KONGUNADU COLLEGE OF ENGINEERING AND TECHNOLOGY

(Autonomous)

NAMAKKAL – TRICHY MAIN ROAD, THOTTIAM, TRICHY

DEPARTMENT OF ARTIFICIAL INTELLIGENCE AND DATA SCIENCE

24MC003 CONSTITUTION OF INDIA

24MC003	CONSTITUTION OF INDIA (Common to All Branches)	L T P C 2 0 0 0

OBJECTIVES:

The students should be made to:

- Apply the understanding of fundamental rights and duties to real life situations and legal case studies.
- Illustrate the roles and responsibilities parliamentary framework.
- Analyze the general structure of the state executive roles in the state level.
- Investigate the powers and judicial responsibilities of the higher Judiciary.
- Judge the strength and limitations of India's federal power structure in practice.

UNIT 1 INTRODUCTION 6

Historical background - Government of India act - Indian councils act - Making of the constitution - Philosophy of the Indian constitution - Preamble.

UNIT II GOVERNMENT OF THE UNION 6

Powers and Functions of President and Prime Minister - Council of Ministers – President in relation to his council - Legislature structure and functions of Lok Sabha and Rajya Sabha - Speaker.

UNIT III GOVERNMENTS OF THE STATES AND LOCAL GOVERNMENT 6

The state executive: General structure - Governor - Council of ministers - State legislature. Local government - Panchayat - Municipality - Power authority and responsibilities municipalities.

UNIT IV THE JUDICATURE 6

Organization and Composition of Judiciary – Constitution – Appointment - Qualifications - Powers and functions of the supreme court– High courts – Control over subordinate courts.

UNIT V THE FEDERAL SYSTEM 6

Distribution of financial powers: Need, principles-Underlying distribution of tax revenues-Distribution of legislative power – Interstate relation - Emergency provisions.

TOTAL: 30 PERIODS

OUTCOMES:

On successful completion of the course, the students will be able to,

- Distinguish and apply constitutional principles and democratic values of the Indian constitution.
- Emphasize on the powers and interactions of the president, prime ministers in the parliamentary structure.
- Evaluate the structure, powers and functions of state and local governance.
- Demonstrate the Indian judiciary, structure and functions of courts.
- Explore the financial, legislative provisions of Indian federation.

CHAIRMAN
BoS (S&H) 20/06/25

TEXT BOOKS:

1. Basu D.D, "Introduction to Indian Constitution", Prentice Hall of India, New Delhi, 2015.
2. Gupta D.C, "Indian Government and Politics", Vikas Publishing House, New Delhi, 2010.

REFERENCES:

1. Pylee M.V, "Introduction to the Constitution of India", Vikas Publishing House, New Delhi, 2011.
2. Kashyap S, "Our Constitution", National Book Trust, New Delhi, 2010.
3. The Constitution of India, 1950 (Bare Act), Government Publication.
4. Jain M P, Indian Constitution Law, 7th Edition. Lexis Nexis, 2014.
5. Busi S N, Ambedkar B R framing of Indian Constitution, 1st Edition, 2015.

Mapping of COs with Pos

	PO1	PO2	PO3	PO4	PO5	PO6	PO7	PO8	PO9	PO10	PO11
CO1	-	-	-	-	-	3	3	-	-	-	2
CO2	-	-	-	-	-	3	3	2	2	2	3
CO3	-	-	-	-	-	3	3	2	2	2	3
CO4	-	-	-	-	-	3	3	-	2	2	3
CO5	-	-	-	-	-	3	3	-	-	3	2

CHAIRMAN
BoS (S&H)

KONGUNADU COLLEGE OF ENGINEERING AND TECHNOLOGY

(Autonomous)

Approved by AICET, New Delhi & Affiliated to Anna University, Chennai
Accredited by NBA (CSE, ECE, EEE, Mech), NAAC,
Recognized by UGC with 2(f) &12(B) An ISO 9001:2005 Certified Institution
Namakkal - Trichy Main Road,
Tholurpatti (post), Thottiam, Trichy – 621215, Tamil Nadu

DEPARTMENT OF ARTIFICIAL INTELLIGENCE AND DATA SCIENCE

COURSE MATERIAL

Course Code with Name	**: 24MC003 CONSTITUTION OF INDIA**
Course Faculty	**: Mrs. A. GOWRI**
Batch	**: 2024-2028**
Year / Semester / Section	**: II / IV / A &B**

CONTENTS

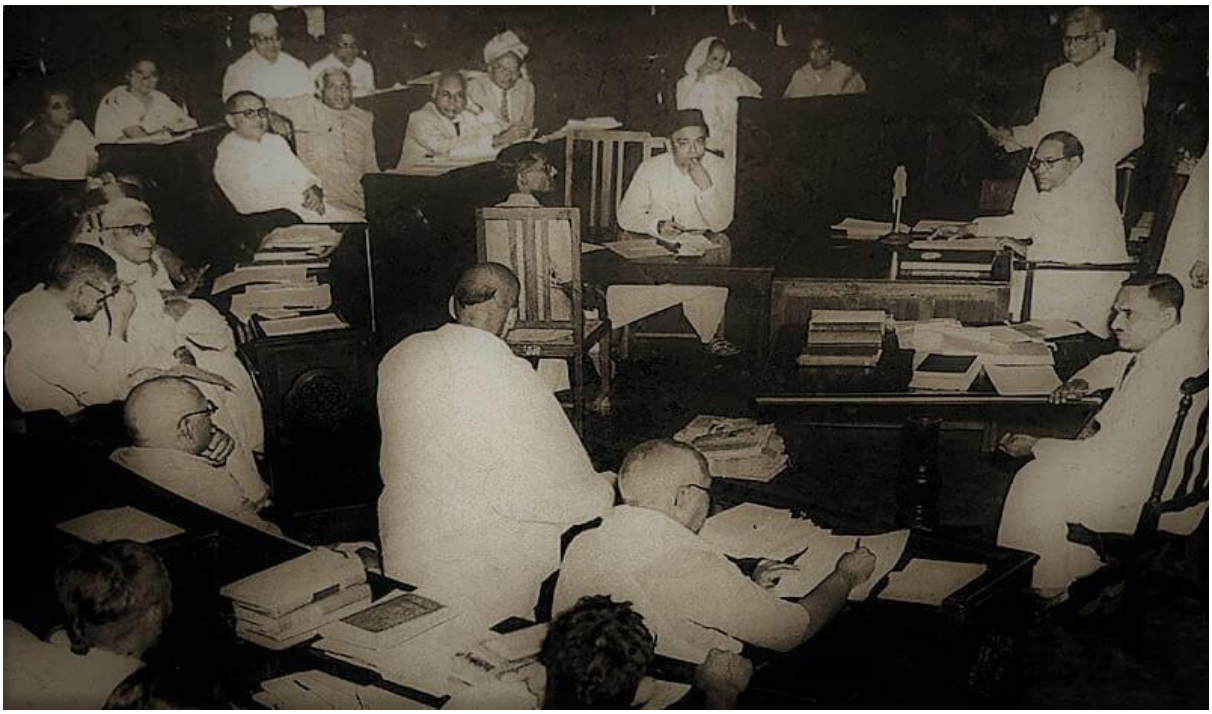
Title	Page No
Content	**1**
Unit I Introduction	
Historical background	2
Government of India act	4
Indian councils act	4
Making of the constitution	6
Philosophy of the Indian constitution	7
Preamble	9
Two Marks and Important Questions	13
Unit II Government of the Union	
Powers and Functions of President and Prime Minister	16
Council of Ministers	21
President in relation to his council	23
Legislature structure and functions of LokSabha and RajyaSabha	26
Speaker.	29
Two Marks and Important Questions	35
Unit III Governments of the States and Local Government	
The state executive	37
General structure	38
Governor	40
Council of ministers	41
State legislature.	42
Local government	42
Panchayat	44
Municipality	46
Power authority	50
Responsibilities	50
Municipalities.	55
Two Marks and Important Questions	55
Unit IV The Judicature	
Organization	58
Composition of Judiciary	59
Constitution	60
Appointment	60
Qualifications	60
Powers and functions of the supreme court	70
High courts	72
Control over subordinate courts.	74
Two Marks and Important Questions	77
Unit V The Federal System	
Distribution of financial powers	80
Need	88
Principles	88
Underlaying distribution of tax revenues	89
Distribution of legislative power	96
Interstate relation	97
Emergency provisions	98
Two Marks and Important Questions	104

Faculty Incharge **Co-Ordinator** **HOD**

24MC003 CONSTITUTION OF INDIA
Unit I

Introduction

Historical Background of Indian Constitution



Before 1947, India was divided into two main entities – The British India which consisted of 11 provinces and the Princely states ruled by Indian princes under subsidiary alliance policy. The two entities merged together to form the Indian Union, but many of the legacy systems in British India is followed even now. The historical underpinnings and evolution of the India Constitution can be traced to many regulations and acts passed before Indian Independence.

Indian System of Administration

Indian democracy is a Parliamentary form of democracy where the executive is responsible to the Parliament. The Parliament has two houses – Loksabha and Rajyasabha. Also, the type of governance is Federal, ie there is separate executive and legislature at Center and States. We also have self-governance at local government levels. All these systems owe their legacy to the British administration. Let us see the historical background of the Indian Constitution and its development through the years.

Regulating Act of 1773

- The first step was taken by the British Parliament to control and regulate the affairs of the East India Company in India.

- It designated the **Governor** of Bengal (Fort William) as the **Governor-General (of Bengal).**
- Warren Hastings became the first Governor-General of Bengal.
- Executive Council of the Governor-General was established (Four members). There was no separate legislative council.
- It subordinated the Governors of Bombay and Madras to the Governor-General of Bengal.
- The Supreme Court was established at Fort William (Calcutta) as the Apex Court in 1774.
- It prohibited servants of the company from engaging in any private trade or accepting bribes from the natives.
- Court of Directors (the governing body of the company) should report its revenue.

Pitt's India Act of 1784

- Distinguished between commercial and political functions of the company.
- Court of Directors for Commercial functions and Board of Control for political affairs.
- Reduced the strength of the Governor General's council to three members.
- Placed the Indian affairs under the direct control of the British Government.
- The companies territories in India were called "the British possession in India".
- Governor's councils were established in Madras and Bombay.

Charter Act of 1813

- The Company's monopoly over Indian trade terminated; Trade with India open to all British subjects.

Charter Act of 1833

- **Governor-General (of Bengal)** became the Governor-General of India.
- First Governor-General of India was Lord William Bentick.
- This was the final step towards centralization in British India.
- Beginning of a Central legislature for India as the act also took away legislative powers of Bombay and Madras provinces.
- The Act ended the activities of the East India Company as a commercial body and it became a purely administrative body.

Charter Act of 1853

- The legislative and executive functions of the Governor-General's Council were separated.

- 6 members in Central legislative council. Four out of six members were appointed by the provisional governments of Madras, Bombay, Bengal and Agra.
- It introduced a system of open competition as the basis for the recruitment of civil servants of the Company (Indian Civil Service opened for all).

Government of India Act of 1858

- The rule of Company was replaced by the rule of the Crown in India.
- The powers of the British Crown were to be exercised by the Secretary of State for India
- He was assisted by the **Council of India**, having 15 members
- He was vested with complete authority and control over the Indian administration through the Viceroy as his agent
- The Governor-General was made the Viceroy of India.
- Lord Canning was the first Viceroy of India.
- Abolished Board of Control and Court of Directors.

Indian Councils Act of 1861

- It introduced for the first time Indian representation in the institutions like Viceroy's executive+legislative council (non-official). **3 Indians entered the Legislative council**.
- Legislative councils were established in Center and provinces.
- It provided that the Viceroy's Executive Council should have some Indians as the non-official members while transacting the legislative businesses.
- It accorded statutory recognition to the portfolio system.
- Initiated the process of decentralisation by restoring the legislative powers to the Bombay and the Madras Provinces.

India Council Act of 1892

- Introduced indirect elections (nomination).
- Enlarged the size of the legislative councils.
- Enlarged the functions of the Legislative Councils and gave them the power of discussing the Budget and addressing questions to the Executive.

Indian Councils Act of 1909

1. This Act is also known as the Morley- Minto Reforms.
2. Direct elections to legislative councils; first attempt at introducing a representative and popular element.
3. It changed the name of the Central Legislative Council to the Imperial Legislative Council.
4. The member of the Central Legislative Council was increased to 60 from 16.

5. Introduced a system of communal representation for Muslims by accepting the concept of 'separate electorate'.
6. **Indians for the first time in Viceroys executive council**. (Satyendra Prasanna Sinha, as the law member)

Government of India Act of 1919

- This Act is also known as the Montague-Chelmsford Reforms.
- The Central subjects were demarcated and separated from those of the Provincial subjects.
- The scheme of dual governance, 'Dyarchy', was introduced in the Provincial subjects.
- Under the dyarchy system, the provincial subjects were divided into two parts – transferred and reserved. On reserved subjects, Governor was not responsible to the Legislative council.
- The Act introduced, for the first time, **bicameralism at the center**.
- **Legislative Assembly** with 140 members and **Legislative council** with 60 members.
- Direct elections.
- The Act also required that the three of the six members of the Viceroy's Executive Council (other than Commander-in-Chief) were to be Indians.
- Provided for the establishment of the Public Service Commission.

Government of India Act of 1935

- The Act provided for the establishment of an All-India Federation consisting of the Provinces and the Princely States as units, though the envisaged federation never came into being.
- Three Lists: The Act divided the powers between the Centre and the units into items of three lists, namely the Federal List, the Provincial List and the Concurrent List.
- The Federal List for the Centre consisted of 59 items, the Provincial List for the provinces consisted of 54 items and the Concurrent List for both consisted of 36 items
- The residuary powers were vested with the Governor-General.
- The Act abolished the Dyarchy in the Provinces and introduced 'Provincial Autonomy'.
- It provided for the adoption of Dyarchy at the Centre.
- Introduced bicameralism in 6 out of 11 Provinces.
- These six Provinces were Assam, Bengal, Bombay, Bihar, Madras and the United Province.
- Provided for the establishment of Federal Court.
- Abolished the Council of India.

Indian Independence Act of 1947

- It declared India as an Independent and Sovereign State.
- Established responsible Governments at both the Centre and the Provinces.
- Designated the Viceroy India and the provincial Governors as the Constitutional (normal heads).
- It assigned dual functions (Constituent and Legislative) to the Constituent Assembly and declared this dominion legislature as a sovereign body.

Making of the Indian Constitution

December is a remarkable time in the journey of India to become an independent country because it was exactly 70 years back on December 9th (1946) that the Constituent assembly of India sat together for the first time to draft the constitution. And not just the constitution but India also acquired its National flag, Anthem and a lot more which accelerated the journey of attaining independence.

Constitution of India

It is a well-established fact that the Constitution of India is the most supreme law of the country and the torchbearer of fundamental political code, powers, and duties of government, procedure, directive principles, and duties of the citizen. Even the Parliament is not allowed to overpower the Constitution because of its constitutional supremacy over parliamentary supremacy and the fact that it was framed through constituent assembly which was headed by Dr. B. R. Ambedkar and not Parliament and its members.

Sovereignty, sociality, secularity is the three claims of the Constitution and it also assures justice, equity, and liberty to people residing in his country.

Initiation of making of the Constitution

- The beginning of the idea to draft a constitution came up in the year 1928 when the All Parties Conference summoned a committee in order to draft the Constitution and that report came to be known as the Nehru Report.
- In the year 1934, the idea to form a constituent assembly was proposed by Mahendra Nath. Since the majority of colonial India functioned under British rule from 1857 to 1947, as a result, the same legislation continued from 1947 to 1950 because the states were the dominion of Britain for these many years.
- Before the commencement of the Constitution, there were legislations which governed the functioning of Indian provinces like the Indian Independence Act 1947 and Government of India Act 1935 but these legislations were repealed by the Constitution after its commencement i.e., from 26 January 1950.

- On 14th of August 1947 a meeting of the assembly was held which proposed committees that started working on the draft and finally the committee was appointed and a revised constitution was prepared by the committee and it submitted to the assembly on 4th November 1947.
- Some major committees contributing were- the Drafting committee headed by B.R. Ambedkar, Union powers committee headed by Jawaharlal Nehru, Union Constitution committee headed by Sardar Vallabh Patel, Advisory committee on Fundamental rights headed by Sardar Patel, and other sub-committees.

There were few amendments which were suggested and the revised draft constitution was discussed. The final session of the assembly which was convened on the 4th of January 1950 was the day when each member of the assembly signed two copies of the constitution, one was in Hindi and the other was in English. Also, a fact, our constitution is the only constitution which was hand written and was pretty much filled with designs by artists.

The constitution was published at Dehradun and the final constitution took almost 5 years to publish. Before adopting the Constitution, the assembly held eleven sessions in 165 days. Since the constitution was adopted on the 26th of November, we also know that day as the National Law Day or Constitution Day. This day is also known as the day where the significance of the constitution is spread through the thoughts of Ambedkar. The cost estimated for the making of the constitution was 6.3 crores.

The 26th of January 1930 was declared as Independence Day by the Congress but India did not get Independence until 1947 and did not become a republic until 1950. The reason it was considered to become a republic in 1950 was due to the enactment of the Constitution. Even when the country was free from the British Raj still, we used to follow the British monarch which was replaced by India's newly adapted constitution and so, India became a Republic.

The Constitution of India is not just a book of laws but it is a living document which carries the guidelines to make the working of the government efficient and also puts down the basic framework that defines fundamental political principles and it also lays down the structure, power, procedures, etc. When the constitution was commenced, it had 395 articles in 22 portions and 8 schedules and consisted of almost 80,000 words.

Philosophy and Ideals of Indian Constitution

The constitution of India is the supreme law of India; it lays down the frame work defining fundamental political principles, establishes the structure, procedure, powers and duties of government institutions and sets our fundamental rights, directive principles and the duties of citizens. It is the longest written constitution of any sovereign country in the world. Dr. Bhimrao

Ambedkar was the chairperson of the Drafting Committee, adopted by Constituent Assembly on Nov 26th, 1949, and came into effect on Jan 26th, 1950. This constitution is a living document, an instrument which makes the government system work.

National Values As Enshrined In Constitution Of India And Its Importance

Today, there is great deterioration in our ethical standards, loss of moral and social values resulting in great problems and dilemmas of families, society, nation and ultimately entire world. The constitution of India is the great source of human values and it emphasizes on promoting humanism through its legislative, executive and judiciary institutions. Education as supposed to be a powerful instrument of social change, has to be restructured and reoriented to promote the human values as enunciated in the constitution of India, because the obvious need of mankind is to live in harmony and to nurture creativity so as to realize the goals of inclusive society.

Values enshrined in the Constitution of India points towards the principles of equality and social justice and appreciation of cultural values of each other, dignity of all individuals etc. Values such as equality, fraternity and justice can promote inclusively where all members of the society feel included irrespective of their color, culture, economic or social background, caste, religion, gender or community. The culture of inclusivity is particularly relevant and important in the context of our society, nation and making education, a right for all children. Education, its values and its relevance and reflections, finds an important place in the Constitution of India.

Theme of a Constitution

Preamble is like a mini constitution. It reminds us the noble and grand vision of our constitution makers. The preamble is also known as the soul, spirit and backbone of the Indian Constitution. Without reading the preamble makes no sense in reading the constitution. It is the preamble which gives a brief idea about why the constitution has been prepared. The preamble can be classified into three parts:-

According to the first part, the people of India solemnly resolved India into a Sovereign, Socialist, Secular, Democratic, Republic, each and every word of the preamble is wisely chosen and arranged in such a way that by reading the preamble makes a clear picture of India's stand towards its citizen. The first part explains about:-

• The word Sovereign emphasized that there is no authority outside India on which the country is in any way dependent.

• By the word Socialist, the constitution means that the achievement of Socialistic pattern of society through democratic means.

• India is a Secular country and follows age old Indian philosophy Sarva Dharma Sambhav.

• The term Democratic refers not only to political democracy but also to social and economical democracy. Democracy means that the ruler elected by the people of India, which follows a system of "Representative Democracy."

• The word Republic denotes a government where no one holds public power as proprietary right, means the head of the state or country is an elected representative and not the hereditary monarch.

Preamble

- A preamble is an introductory statement in a document that explains the document's philosophy and objectives.
- In a Constitution, it presents the intention of its framers, the history behind its creation, and the core values and principles of the nation.
- The preamble basically gives idea of the following things/objects:
  - Source of the Constitution
  - Nature of Indian State
  - Statement of its objectives
  - Date of its adoption

History of the Preamble to Indian Constitution

- The ideals behind the Preamble to India's Constitution were laid down by Jawaharlal Nehru's Objectives Resolution, adopted by the Constituent Assembly on January 22, 1947.
- Although not enforceable in court, the Preamble states the objectives of the Constitution, and acts as an aid during the interpretation of Articles when language is found ambiguous.

Components of Preamble

- It is indicated by the Preamble that the source of authority of the Constitution lies with the people of India.
- Preamble declares India to be a sovereign, socialist, secular and democratic republic.
- The objectives stated by the Preamble are to secure justice, liberty, equality to all citizens and promote fraternity to maintain unity and integrity of the nation.
- The date is mentioned in the preamble when it was adopted i.e. November 26, 1949.

Key words in the Preamble

- We, the people of India: It indicates the ultimate sovereignty of the people of India. Sovereignty means the independent authority of the State, not being subject to the control of any other State or external power.
- **Sovereign:** The term means that India has its own independent authority and it is not a dominion of any other external power. In the country, the legislature has the power to make laws which are subject to certain limitations.
- **Socialist:** The term means the achievement of socialist ends through democratic means. It holds faith in a mixed economy where both private and public sectors co-exist side by side.
  - It was added in the Preamble by 42nd Amendment, 1976.
- **Secular:** The term means that all the religions in India get equal respect, protection and support from the state.
  - It was incorporated in the Preamble by 42nd Constitutional Amendment, 1976.
- **Democratic:** The term implies that the Constitution of India has an established form of Constitution which gets its authority from the will of the people expressed in an election.
- **Republic:** The term indicates that the head of the state is elected by the people. In India, the President of India is the elected head of the state.

Objectives of the Indian Constitution

- The Constitution is the supreme law and it helps to maintain integrity in the society and to promote unity among the citizens to build a great nation.
- The main objective of the Indian Constitution is to promote harmony throughout the nation.

  The factors which help in achieving this objective are:

  - **Justice:** It is necessary to maintain order in society that is promised through various provisions of Fundamental Rights and Directive Principles of State Policy provided by the Constitution of India. It comprises three elements, which is social, economic, and political.
    - **Social Justice –** Social justice means that the Constitution wants to create a society without discrimination on any grounds like caste, creed, gender, religion, etc.
    - **Economic Justice** – Economic Justice means no discrimination can be caused by people on the basis of their wealth, income, and economic status. Every person must be paid equally for an equal position and all people must get opportunities to earn for their living.

- **Political Justice –** Political Justice means all the people have an equal, free and fair right without any discrimination to participate in political opportunities.

- **Equality:** The term 'Equality' means no section of society has any special privileges and all the people have given equal opportunities for everything without any discriminations. Everyone is equal before the law.
- **Liberty:** The term 'Liberty' means freedom for the people to choose their way of life, have political views and behavior in society. Liberty does not mean freedom to do anything, a person can do anything but in the limit set by the law.
- **Fraternity:** The term 'Fraternity' means a feeling of brotherhood and an emotional attachment with the country and all the people. Fraternity helps to promote dignity and unity in the nation.

Importance of Objectives:

It provides a way of life. It includes fraternity, liberty, and equality as the notion of a happy life and which can not be taken from each other.

- Liberty cannot be divorced from equality, equality cannot be divorced from liberty. Nor can liberty and equality be divorced from fraternity.
- Without equality, liberty would produce the supremacy of the few over the many.
- Equality without liberty would kill individual initiative.
- Without fraternity, liberty would produce the supremacy of the few over the many.
- Without fraternity, liberty and equality could not become a natural course of things.

Status of Preamble

- The preamble being part of the Constitution is discussed several times in the Supreme Court. It can be understood by reading the following two cases.
  - Berubari Case: It was used as a reference under Article 143(1) of the Constitution which was on the implementation of the Indo-Pakistan Agreement related to the Berubari Union and in exchanging the enclaves which were decided for consideration by the bench consisting of eight judges.
  - Through the Berubari case, the Court stated that 'Preamble is the key to open the mind of the makers' but it can not be considered as part of the Constitution. Therefore it is not enforceable in a court of law.

- Kesavananda Bharati Case: In this case, for the first time, a bench of 13 judges was assembled to hear a writ petition. The Court held that:
  - The Preamble of the Constitution will now be considered as part of the Constitution.
  - The Preamble is not the supreme power or source of any restriction or prohibition but it plays an important role in the interpretation of statutes and provisions of the Constitution.
  - So, it can be concluded that preamble is part of the introductory part of the Constitution.
- In the 1995 case of Union Government Vs LIC of India also, the Supreme Court has once again held that Preamble is the integral part of the Constitution but is not directly enforceable in a court of justice in India.

Amendment of the Preamble

42nd Amendment Act, 1976: After the judgment of the Kesavanand Bharati case, it was accepted that the preamble is part of the Constitution.

- As a part of the Constitution, preamble can be amended under Article 368 of the Constitution, but the basic structure of the preamble can not be amended.
- Because the structure of the Constitution is based on the basic elements of the Preamble. As of now, the preamble is only amended once through the 42nd Amendment Act, 1976.

- The term 'Socialist', 'Secular', and 'Integrity' were added to the preamble through 42nd Amendment Act, 1976.
  - 'Socialist' and 'Secular' were added between 'Sovereign' and 'Democratic'.
  - 'Unity of the Nation' was changed to 'Unity and Integrity of the Nation'.

UNIT I

INTRODUCTION

PART-A

1. What is meant by Indian Constitution?

   India's Constitution is the supreme law of India. ... It conveys constitutional supremacy & not parliamentary supremacy because it is not established by the Parliament but by a constituent assembly and adopted by its citizens, with a declaration in its preamble.

2. What are the two houses of Parliament?

   - Lok Sabha
   - Rajya Sabha

3. Mention the objective of Preamble.

   - We the People of India
   - Sovereign
   - Socialist
   - Secular
   - Democratic
   - Republic

4. Write short notes on Pitt's India Act of 1784

   - Distinguished between commercial and political functions of the company.
   - Court of Directors for Commercial functions and Board of Control for political affairs.
   - Reduced the strength of the Governor General's council to three members.
   - Placed the Indian affairs under the direct control of the British Government.
   - The companies territories in India were called "the British possession in India".
   - Governor's councils were established in Madras and Bombay.

5. Write short notes on Indian Independence Act of 1947.

   - It declared India as an Independent and Sovereign State.
   - Established responsible Governments at both the Centre and the Provinces.
   - Designated the Viceroy India and the provincial Governors as the Constitutional (normal heads).
   - It assigned dual functions (Constituent and Legislative) to the Constituent Assembly and declared this dominion legislature as a sovereign body.

6. Define Constitution

   A constitution is a set of principles and laws on which a polity or governing system of that state has to work. Answer: A constitution is a set of principles and laws on which a polity or governing system of that state has to work.

7. What are the objectives of Constitution?
    - Justice
    - Social Justice
    - Economic Justice
    - Political Justice
    - Equality
    - Liberty
    - Fraternity
8. State Preamble.

    Preamble declares India to be a sovereign, socialist, secular and democratic republic. The objectives stated by the Preamble are to secure justice, liberty, equality to all citizens and promote fraternity to maintain unity and integrity of the nation

9. What is Indian Council Act?

    The Indian Councils Act 1909 (The act introduced elections to legislative councils and admitted Indians to councils of the Indian Secretary, the viceroy, and to the executive councils of Bombay and Madras states. Muslims were granted separate electorates.

10. Write short notes on equality and fraternity.

    Equality

    The term 'Equality' means no section of society has any special privileges and all people have given equal opportunities for everything without any discriminations. Everyone is equal before the law.

    Fraternity

    The term 'Fraternity' means a feeling of brotherhood and an emotional attachment with the country and all the people. Fraternity helps to promote dignity and unity in the nation.

PART-B

1. Briefly explain the Acts of Historical Development given below
   - (i) Government of India Act of 1858
   - (ii) Government of India Act of 1919
   - (iii) Government of India Act of 1935
   - (iv) Government of India Act of 1947
2. Explain the Acts of Historical Development given below
   - (i) Charter Act of 1833
   - (ii) Charter Act of 1853
3. Describe the following with necessary explanation
   - (i) Indian Councils Act of 1861
   - (ii) Indian Councils Act of 1892
   - (iii) Indian Councils Act of 1909
4. State the Objectives of Indian Constitution and also explain which factors help to achieve these objectives.
5. Write short notes on Philosophy and Ideals of Indian Constitution along with discuss the theme of Constitution.
6. Describe about history of the preamble to Indian Constitution in that discuss about Components, Keywords, Status and Amendment of the Preamble.
7. Briefly explain the Acts of Historical Development given below
   - (i) Regulating Act of 1773
   - (ii) Pitt's India Act of 1784
8. Summarize the Initiation of making the constitution.

Unit II

Government of the Union

Power and Functions of President and Prime Ministers
Powers and Functions of President in India

The constitutional powers and functions of the President of India may be classified into six principal types.

Executive Functions

1. Head of the Union: The President is at the head of the Union Executive. Consequently, all executive powers are exercised in his name. The executive power of the Union to be exercised by the President is extended to the matters with respect to which Parliament has power to make laws and to conclude treaty and agreement.

2. Appointments: As head of the executive, the President appoints the Governors of States, the Judges of the Supreme Court and the High Courts, the Auditor General of India and many other high officials, such as the members of Finance Commission, Election commission, Union Public commission etc.

3. Appointment of the Prime Minister and other Ministers: The President also appoints the Prime Minister and with his advice the other Ministers of the Union Council of Ministers. But here too, as in all other appointments, the President can seldom use his discretion. He is, ordinarily, duty-bound to summon the leader of the political party which secures an absolute majority in the Lok Sabha to become the Prime Minister and form the Ministry. He does enjoy some discretionary powers in the matter only under exceptional circumstances. When no single political party wins a clear absolute majority and, as a result, no Council of Ministers can be formed without a coalition of parties the President can exercise his discretion judiciously in appointing the Prime Minister. Such situations developed in the past. India has entered into an age of coalition politics. And it may so happen that no single party will be able to secure an absolute majority, and the President may be required to exercise his discretionary power for some time to come, in appointing Prime Minister.

4. Can ask to prove Majority in Lok Sabha: Union Council of Ministers normally remains in office for five years, unless dissolved earlier for any reason. The President must be satisfied that the Council of Ministers enjoys the confidence of the majority of the Lok Sabha. In case of any doubt he can ask the Council of Ministers to prove its majority in the Lok Sabha, as the Prime Ministers Sri H.D. Deve Gowda was asked by the President after the official withdrawal of support by the Congress Party from Ministry. The President can also dissolve the Union Council

of Ministers in accordance with Article 75(2) of the constitution, if he finds that the Ministry does not enjoy the support of the majorities in the Lok Sabha.

5. Supreme Commander: As head of State, the President is the supreme Commander of the Armed Forces of India and is entitled to declare war or conclude a treaty.

Legislative Powers and Functions

1. President is a part of Parliament: The Union Legislature or Parliament consists of the President and two Houses of Parliament. The President is, therefore, an integral part of Union Legislature. He shall summon from time to time, either separately or jointly, the Houses of Parliament. The President can prorogue the Houses or either House of Parliament and, if necessary, can dissolve the lower Chamber of Parliament, the Lok Sabha. For example, the President solved the twelfth Lok Sabha in early 1999 when the confidence motion in favour your of the Vajpayee government was lost in the Lok Sabha.

2. Summons and Addresses Parliament: The President may address either or both House of Parliament. In such address, at the first session after general election to the Lok Sabha and at beginning of a joint session of Parliament each year, he may place the reasons for summoning it. Apart from addressing Parliament, the President may also, in case of 3 necessities, send messages to either House, or to both Houses [Article 86(2)]. Normally, the President does not send such a message, unless however, he has a serious disagreement with the Council of Ministers.

3. Nomination: The President nominates a number of members in both Houses. The chief purpose of the nomination is to ensure adequate representation in Parliament of all sections of population which many not always be achieved through elections.

4. Power in respect of Bills: The President has certain functions in respect of passing of a Bill. A bill passed by both the Houses of Parliament requires his assent in order to become an Act. He may give his assent to a bill or can withhold assent when a bill, after getting approved in both the Houses, is placed before the President. But, if Parliament, acting on President's refusal to assent to a bill, passes it again with or without amendment, for the second time and presents it to the President for his approval, the President shall not withhold his assent there from under Article 111. In other words, it becomes obligatory upon him to give his assent. In certain cases, prior sanction of the President is required for initiating any legislation. For instance, bill for formation of a new State or altering the boundaries of the existing State or States is to be placed before Parliament with prior approval of the President. Money bill is another example where obtaining of such approval of the President is a constitutional necessity.

5. Bill passed by a State Legislature: A bill passed by a State Legislature may also be reserved for the consideration of the President by the Governor of that State. The President enjoys this right in relation to a bill passed by a State Legislature only in such cases where those are referred to him by the Government of a State under Article 200.

Power to Promulgate Ordinances

Except when both Houses of Parliament are in session, the President may promulgate such Ordinances as the circumstances appear to him to require (Article 123). Such an ordinance can have the same force and effect of an Act of Parliament. Such an ordinance shall cease to operate unless passed by both Houses of Parliament within the stipulated period. A.K. Roy vs. Union of India (1982) illustrates the proposition that the satisfaction of the President must be as to the existence of a situation which makes it necessary for the President to promulgate such on Ordinance.

The more controversial and debatable legislative power of the President has always been the Ordinance Making Power. Usually the power to make the laws rests with the Parliament. However, special power on the President empowering him to promulgate ordinances when the Parliament is not in session and the circumstances are such which 4 require immediate action. An ordinance cannot be promulgated when both the houses of parliament are in session However it may be passed when only one house is in session the reason being that a law cannot be passed by only one house and thus it cannot meet a situation calling for immediate legislation. This power granted to the President in the Indian Constitution is unique and no such power has been conferred upon the executive in Britain or the USA.

In justification of the inception of the Ordinance Making power in the Constitution Dr Ambedkar said that there might be a situation of emergency when the Houses of the parliament are not in session. It is important that this situation should be dealt with and it seems to me that the only solution is to confer upon the President the power to promulgate the law which will enable the executive to deal with that particular situation because it cannot resort to the ordinary process of law because the legislature is not in session.

Financial Powers and Functions

The President of India also exercises financial powers. No money bill can be introduced in Parliament without the recommendations of the President. According to the Constitution of India, the Annual Financial Statement is placed by the President before both the Houses of Parliament. This statement shows the estimates of revenue and expenditure of the central Government for the next year. It may be pointed out that the proposal for taxation and

expenditure cannot be made without the approval of the President. . No proposal for spending money or raising revenues for purposes of government can be introduced in Parliament without previous permission of the President.

Emergency Powers of the President

1. The constitution of India empowers the President to proclaim three kinds of Emergencies: National Emergency (Art. 352);
2. Emergency for failure of Constitutional Machinery in a State (Art. 356);
3. Financial Emergency (Art. 360)

1 National Emergency

The President of India may issue a Proclamation of National Emergency when the security of India or any part thereof is threatened by war, armed rebellion or external aggression. Such a Proclamation of Emergency may remain in force for an indefinite period. During a Proclamation of National Emergency, the executive power of the States is to be exercised in accordance with the directions given by the Central Government. Parliament has the power to make laws on the subjects enumerated in the State List. The right to freedom of speech and expression, freedom to form association, freedom to practice and profession, etc., embodied in Article 19 shall remain suspended.

2. Failure of State Constitutional Machinery

In Case of failure of Constitutional machinery in a State, the President of India is authorized to make a Proclamation to that effect. The maximum duration of this type of emergency is three (3) years. During such an emergency, the President may assume to himself the executive powers of the State. The powers of the legislatures of the State are to be exercised by the Union Parliament.

3. Financial Emergency

The President may also issue a Proclamation of Financial if he is satisfied that the financial stability of India is threatened. This type of emergency may continue to remain in force for an indefinite period. The Central Government may give directions to the States for canons of financial propriety. All money-bills passed by the State Legislatures are to be reserved for the consideration of the President. The President of India grants, pardons, reprieves or remissions of punishment to any person who has been convicted by a Court of Law.

Diplomatic powers

All international treaties and agreements are negotiated and concluded on behalf of the President. However, in practice, such negotiations are usually carried out by the Prime Minister along with his Cabinet (especially the Foreign). Also, such treaties are subject to the approval of the Parliament. The President represents India in international forums and affairs where such a function is chiefly ceremonial. The President may also send and receive diplomats, i.e. the officers from the Indian Foreign Service. The President is the first citizen of the country.

Military powers

The President is the Supreme Commander of the Indian Armed Forces. The President can declare war or conclude peace,[20] on the advice of the Union Council of Ministers headed by the Prime Minister. All important treaties and contracts are made in the President's name.[25] He also appoints the chiefs of the service branches of the armed forces.

Pardoning Powers / Judicial Powers

The President of India grants, pardons, reprieves or remissions of punishment to any person who has been convicted by a Court of Law. As mentioned in Article 72 of the Indian Constitution, the President is empowered with the powers to grant pardons in the following situations:

The decisions involving pardoning and other rights by the President are independent of the opinion of the Prime Minister or the Lok Sabha majority. In most cases, however, the President exercises his executive powers on the advice of the Prime Minister and the cabinet.

Powers and Functions of the Prime Minister

Concerning the Council of Ministers

The Prime Minister enjoys the following powers as head of the Union council of ministers:

1. He recommends persons who can be appointed as ministers by the president. The President can appoint only those persons as ministers who are recommended by the Prime Minister.
2. He allocates and reshuffles various portfolios among the ministers.
3. He can ask a minister to resign or advise the President to dismiss him in case of a difference of opinion.
4. He presides over the meeting of the council of ministers and influences its decisions.
5. He guides, directs, controls, and coordinates the activities of all the ministers.
6. He can bring about the collapse of the council of ministers by resigning from office.

Since the Prime Minister stands at the head of the council of ministers, the other ministers cannot function when the Prime Minister resigns or dies. In other words, the resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum. The resignation or death of any other minister, on the other hand, merely creates a vacancy which the Prime Minister may or may not like to fill.

Concerning the President

Council of Ministers

The Council of Ministers is a crucial part of the Indian executive, responsible for assisting the President of India in governing the country and implementing policies. Its structure, functions, and responsibilities are clearly defined in the Constitution of India, mainly under Articles 74 and 75.

1. Definition

The Constitution states that there shall be a Council of Ministers with the Prime Minister at its head to aid and advise the President in the exercise of their functions. While the President is the formal executive head, real executive powers are exercised by the Council of Ministers.

Article 74(1): Requires the President to act according to the advice of the Council of Ministers.

- Article 74(2): Protects the validity of acts done by the President even if advice is not given in the prescribed manner.

2. Composition

The Council of Ministers consists of three categories of ministers:

1. Cabinet Ministers:
    - Hold senior-most positions.
    - Head important ministries like Finance, Defence, Home Affairs.
    - Form the core decision-making body of the government.
2. Ministers of State:
    - Assist Cabinet Ministers in their work.
    - May have independent charge of smaller ministries.
3. Deputy Ministers:
    - Support both Cabinet and State Ministers in daily administrative work.

The Prime Minister is the head of the Council and coordinates all its activities.

3. Functions of the Council of Ministers

The Council of Ministers performs several key functions:

- Policy Making: Formulates policies and programs for national development.
- Implementation: Ensures that laws and programs passed by Parliament are implemented efficiently.
- Advising the President: Provides guidance to the President on administration and governance matters.
- Administration: Supervises ministries and departments of the government.

4. Principle of Collective Responsibility

One of the most important features of the Council of Ministers is collective responsibility:

- The entire Council is responsible to the Lok Sabha for its decisions and actions.
- If the Lok Sabha expresses no confidence in the Council, all ministers must resign, including the Prime

Minister.

- This ensures accountability and democratic governance.

5. Key Features

- Headed by the Prime Minister.
- Ministers are appointed by the President on the advice of the PM.
- Acts as the real executive of India, while the President is the nominal head.
- Ensures smooth functioning of government and policy implementation

The Prime Minister enjoys the following powers concerning the President:

1. He is the principal channel of communication between the President and the council of ministers. It is the duty of the prime minister : (a) to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation; (b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and (c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

2. He advises the president concerning the appointment of important officials like attorney general of India, Comptroller and Auditor General of India, chairman and members of the UPSC, election commissioners, chairman and members of the finance commission, and so on.

Concerning Parliament

The Prime Minister is the leader of the Lower House. In this capacity, he enjoys the following powers:

1. He advises the President about summoning and proroguing of the sessions of the Parliament. 2. He can recommend the dissolution of the Lok Sabha to President at any time. 3. He announces government policies on the floor of the House.

Other Powers & Functions

In addition to the above-mentioned three major roles, the Prime Minister has various other roles. These are:

1. He is the chairman of the Planning Commission (now NITI Aayog), National Development Council, National Integration Council, Inter-State Council, and National Water Resources Council.
2. He plays a significant role in shaping the foreign policy of the country.
3. He is the chief spokesman of the Union government.
4. He is the crisis manager-in-chief at the political level during emergencies.

5. As a leader of the nation, he meets various sections of people in different states and receives memoranda from them regarding their problems, and so on.

6. He is the leader of the party in power.

7. He is the political head of the servi ces. Thus, the Prime Minister plays a very significant and highly crucial role in the politico-administrative system of the country. Dr. B R Ambedkar stated, 'If any functionary under our constitution is to be compared with the US president, he is the Prime Minister and not the president of the Union'.

Relationship with the President

President in relation to his council

The President of India is the constitutional head of the executive, while the Council of Ministers, headed by the Prime Minister, exercises actual executive powers. The relationship between the President and the Council of Ministers is guided by the Constitution of India (Articles 74 and 75).

1. Role of the President
- The President is the nominal executive of India.
- All executive actions of the government are formally taken in the name of the President.
- Appoints the Prime Minister and other ministers on the advice of the Prime Minister.

2. Article 74 – Council of Ministers to Aid and Advise
- The President shall act according to the advice of the Council of Ministers (Article 74(1)).
- This ensures that the real executive power rests with the Council of Ministers, not the President.
- Even if advice is not given in the proper manner, actions taken by the President are considered valid (Article 74(2)).

3. Appointment and Removal
- Prime Minister: The President appoints the leader of the majority party in Lok Sabha as PM.
- Other Ministers: Appointed by the President on the advice of the PM.
- The President cannot remove ministers arbitrarily; ministers hold office during the pleasure of the President, which practically means as long as they have the confidence of Lok Sabha.

4. Collective Responsibility
- The Council of Ministers is collectively responsible to the Lok Sabha, not to the President.
- If the Lok Sabha passes a no-confidence motion, the entire Council, including the PM, must resign.
- The President acts as a constitutional safeguard but does not interfere in day-to-day governance.

5. Key Points
- The President is the formal head, while the Council of Ministers is the real executive.
- The President acts on the advice of the Council of Ministers, except in rare discretionary situations.
- Ensures constitutional and democratic accountability through the system of parliamentary governance.

The following provisions of the Constitution deal with the relationship between the President and the Prime Minister:

1. Article 74 There shall be a council of ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice. However, the President may require the council of ministers to reconsider such advice and the President shall act per the advice tendered after such reconsideration.

2. Article 75 (a) The Prime Minister shall be appointed by the President and the other ministers shall be appointed by the president on the advice of the Prime Minister; (b) The ministers shall hold office during the pleasure of the president; (c) The council of ministers shall be collectively

responsible to the House of the People.

3. Article 78 It shall be the duty of the Prime Minister: (a) to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation; (b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and (c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

The main functions of Prime Minister related to the Council of Ministers are as follows:

1. The Prime Minister recommends the names of members of his team to appoint as a Minister. The President can only make those people as ministers whose names are recommended by the Prime Minister.

2. Prime Minister determines which department will be given to which minister and he can also change the allotted department of any Minister.

3. He also presides over the meeting of the Council of Ministers and can change the decisions according to his wishes.

4. He can ask any minister to resign or advise the president to dismiss him in case of differences of opinion.

5. He also controls and directs the activities of all Ministers.

6. He can bring about the collapse of the Council of Ministers by resigning from office.

The Prime Minister of India: Power and Functions

The Prime Minister is the real executive authority (de facto executive) of the country. He appoints many officers as the head of many constitutional institutions. Read this article to know the power and responsibilities of the Prime Minister of India.

There is no special process for the election of the Prime Minister in the Constitution of India. Article 75 only says that India shall have a Prime Minister whose appointment shall be made by the President. The Prime Minister is the leader of the Council of Ministers.

The President is the only nominal ruler while the real executive powers are envisaged in the Prime Minister. In this article, we have explained about the Power and Functions of the Prime Minister of India.

The main functions of Prime Minister related to the Council of Ministers are as follows:

1. The Prime Minister recommends the names of members of his team to appoint as a Minister. The President can only make those people as ministers whose names are recommended by the Prime Minister.

2. Prime Minister determines which department will be given to which minister and he can also change the allotted department of any Minister.

3. He also presides over the meeting of the Council of Ministers and can change the decisions according to his wishes.

4. He can ask any minister to resign or advise the president to dismiss him in case of differences of opinion.

5. He also controls and directs the activities of all Ministers.

6. He can bring about the collapse of the Council of Ministers by resigning from office.

Note: If the Prime Minister resigns from his post or dies, then other ministers can't do any work, which means the Council of Ministers dissolves itself with the death/resignation of the Prime Minister.

Rights in relation to appointments:

The Prime Minister has the right to give advice to the President in relation to the appointment of the following officers:

1. The Comptroller and Auditor General of India
2. Attorney-General of India
3. Solicitor General of India
4. President of the Union Public Service Commission and its members
5. Election Commissioners
6. Chairman and Members of the Finance Commission

Rights in the context of Parliament:

The prime minister is the leader of the lower house of Parliament and he enjoys the following powers.

1. He advises the President with regard to summoning and proroguing of the sessions of the parliament.
2. He can recommend the dissolution of the sessions of the Parliament.
3. He declares government policies on the floor of the house.

Other powers of the Prime Minister:

1. He plays an important role in shaping the foreign policy of the nation.

2. He is the chief spokesman of the Central Government.

3. He is the leader of the ruling party.

4. He is ex-officio Chairman of the Planning Commission (now NITI Aayog), National Development Council, National Integration Council, Inter-State Council and National Water Resources Council.

5. He is the crisis manager-in-chief at the political level during emergencies.

6. He is the political head of the armies.

Legislature structure and functions of Lok Sabha and Rajya Sabha

Legislature

The term legislature has been derived from the Latin word lex, which means a distinct kind of legal rule mainly of general application. This rule is named legislation, and the institution, which enacts it on behalf of the people, is known as legislature. Essentially, there are two models of legislative structure: the Parliamentary and the Presidential. In the parliamentary model, the executive is selected by the legislature from among its own members. Therefore, the executive is responsible to the legislature. The Presidential system is based on the theory of separation of powers and does not permit any person to serve simultaneously in both executive and legislature. The Parliament of India, which is the creation of the Constitution, is the supreme representative authority of the people. It is the highest legislative organ. It is the national forum for the articulation of public opinion.

The Lok Sabha

The Lower House or the House of the People is popularly known as Lok Sabha. Its members are directly elected by the people. The maximum number of members to be elected which was fixed by the Constitution at 500. It was raised to 520 members by the Seventh Constitutional Amendment (1956) and to 545 members by the 42nd Constitutional Amendment (1976). This includes not more than 525 members chosen by direct election from territorial constituencies in the States and not more 20 members to represent the Union Territories.

In addition the President may nominate two members of the Anglo-Indian community if he is of the opinion that the community is not adequately represented in the Lok Sabha. The distribution of seats among the States is based on the principle of territorial representation which means each State is allotted seats on the basis of its population in proportion to the total population of all the States. For election purpose, each state is divided into territorial units called constituencies which are more or less of the same size with regard to the population. The election to the Lok Sabha is conducted on the basis of adult franchise; every adult who has attained 18 years of age is eligible to vote. The candidate who secures the largest number of votes gets elected.

The Constitution provides for an independent organisation known as the Election Commission to conduct elections. The normal life of the Lower House is five years, though it can be dissolved earlier by the President. To be a member of the Lok Sabha, a person should be an Indian citizen, must have completed 25 years of age and must possess all other qualifications that are prescribed by a law of the Parliament. A candidate seeking election to the Lok Sabha can contest from any parliamentary constituency from any of the States in India. The Constitution has laid down certain disqualifications for membership. No person can be member of both Houses of Parliament or member both of Parliament and of a State legislature.

The candidate may contest from several seats, but if elected from more than one, he has to vacate all expect one according to his choice. If a person is elected both to the State legislature and the Parliament and if he does not resign from the State legislature within the specified time period, he will forfeit his seat in Parliament. A member should not hold any office of profit under the Central or State government except those that are exempted by a law of Parliament, and should not have been declared as an insolvent or of unsound mind by a competent court. A member also gets disqualified when he remains absent from the meetings of the House for a period of sixty days without prior permission or when he voluntarily acquires the citizenship of another country or is under any acknowledgement of allegiance to a foreign state.

Structure

The maximum strength of the House envisaged by the Constitution is now 552 .

i. The Lok Sabha consists of not more than 530 members elected by direct election from territorial constituencies in the States,

ii. not more than 20 members to represent the Union Territories .

iii. not more than two members to be nominated by the President to represent the Anglo Indian community.

iv. The Lok Sabha at present consists of 545 members. Of these, 530 members are directly elected from the States and 13 from Union Territories, while two are nominated by the President to represent the Anglo-Indian community. As per Constitution 84th Amendment Act, the total number of seats as allocated to various States in the Lok Sabha on the basis of the 1971 census, shall remain unaltered till the first census to be taken after the year 2026.

v. The Lok Sabha is elected for five years, unless dissolved earlier.

Some Other Powers of Lok Sabha

The Lok Sabha and the Rajya Sabha jointly perform the following functions:

(a) Approval of the ordinances issued by the President

(b) Change of the boundaries of the states. State, creation of new states and change in the name of any state.

(c) Changes in the jurisdiction of the Supreme Court and the High Courts.

(d) Changes the qualifications of the members of the Parliament and State Legislatures.

(e) Revising the salary and allowances of the members of Parliament,

(f) The setting up of Joint Public Service Commission for two or more states.

(g) Passing of a resolution for abolishing or creating the upper chamber of a state legislature,

(h) Approval of a Declaration of Emergency.

Position of the Lok Sabha

After studying the powers and functions of the Lok Sabha, we can say that the Lok Sabha is a very powerful House. The Council of Ministers is responsible to the Lok Sabha and not to the Rajya Sabha. It remains in office so long as it enjoys the confidence of majority in the Lok Sabha. The Lok Sabha has full control over the finances of the State. It dominates ordinary lawmaking bills as nearly 90% of the bills are introduced in it.

The joint sitting method of resolving the deadlocks between the two Houses tends to favour the Lok Sabha. It also controls the executive. The leader of majority in the Lok Sabha becomes the Prime Minister. Lok Sabha can cause the dismissal of the Council of Ministers by passing a vote of no-confidence or by rejecting a policy or law of the government. Hence, the Lok Sabha is a very powerful house of the Union Parliament.

The Rajya Sabha

The Rajya Sabha or Council of States consists of not more than 250 members of which 12 members are nominated by the President from amongst persons having 'special knowledge or practical experience in literature, science, art, and social service.' The remaining members are elected by the members of the State Legislative Assemblies in accordance with the system of proportional representation by means of single transferable vote. Thus, unlike Lok Sabha, Rajya Sabha adopts the method of indirect election. For the purpose of this election, each State is allotted a number of seats, mainly on the basis of their population.

The Rajya Sabha, thus reflects the federal character by representing the States or the units of the federation. However, it does not follow the American principle of equality of State representation in the Second Chamber. Whereas every State of the United States sends two representatives to the Senate, in India, the number of representatives of the States to the Rajya Sabha varies from one (Nagaland) to 34 (Uttar Pradesh) depending upon the population of a state. Rajya Sabha is a continuing chamber as it is a permanent body not subject to dissolution. One third of its members retire at the end of every two years and elections are held for the vacant positions. A member of Rajya Sabha has a sixyear term, unless he resigns or is disqualified.

Special Powers of Rajya Sabha

The Rajya Sabha has hardly any control over the ministers who are individually and jointly responsible to the Lok Sabha. Though it has every right to seek information on all matters which are exclusively in the domain of Lok Sabha, it has no power to pass a vote of no- confidence in the Council of Ministers. Moreover, the Rajya Sabha has not much say in matters of money bills. Nevertheless, the Constitution grants certain special powers to the Rajya Sabha. As the sole representative of the States, the Rajya Sabha enjoys two exclusive powers which are of considerable importance. First, under Article 249, the Rajya Sabha has the power to declare that,

in the national interest, the Parliament should make laws with respect to a matter enumerated in thus, these special provisions make the Rajya Sabha an important component of Indian Legislature rather than just being an ornamental second chamber like the House of Lords of England. The constitution makers have designed it not just to check any hasty legislation, but also to play the role of an important influential advisor. Its compact composition and permanent character provides it continuity and stability.

As many of its members are "elder statesmen" the Rajya Sabha commands respectability. the State List. If by a two-thirds majority, Rajya Sabha passes a resolution to this effect, the Union Parliament can make laws for the whole or any part of India for a period of one year. The second exclusive power of the Rajya Sabha is with regard to the setting up of All-India Services. If the Rajya Sabha passes a resolution by not less than two-thirds of the members present and voting, the parliament is empowered to make laws providing for creation of one or more All- India Services common to the Union and the Sates.

The Speaker

The position of the Speaker of the Lok Sabha is more or less similar to the Speaker of the English House of Commons. The office of the Speaker is symbol of high dignity and authority. Once elected to the office, the speaker severs his party affiliation and starts functioning in an impartial manner. He acts as the guardian of the rights and privileges of the members. The Speaker is conferred with a number of powers to ensure an orderly and efficient conduct of the business of the House. He conducts the proceedings of the house, maintains order and decorum in the house and decides points of order, interprets and applies rules of the house.

The Speaker's decision is final in all such matters. The Speaker certifies whether a bill is money bill or not and his decision is final. The Speaker authenticates that the house has passed the bill before it is presented to the other house or the President of India for his assent. The Speaker in consultation with the leader of the house determines the order of business. He decides on the admissibility of questions, motions and resolutions. The Speaker will not vote in the first instance, but can exercise a casting vote in case of a tie. The Speaker appoints the chairpersons of all the Committees of the house and exercises control over the Secretarial staff of the house.

The Speakers conduct cannot be discusses in in the house except in a substantive motion. His salary and allowances are charged to the Consolidated Fund of India so that the independent character of the office is maintained. A special feature of the Speaker's office is that even when the House is dissolved, the Speaker does not vacate his office. He continues in office until the new House elects another Speaker. In the absence of the Speaker, the Deputy Speaker presides over the House.

Chairperson of Rajya Sabha

The Vice-President of India is the ex-officio chairperson of the Rajya Sabha; but during any period when the Vice President acts a President or discharges the functions of the President, he does not perform the duties as a presiding officer of the Rajya Sabha. The Vice-President is elected by the members of both the houses of Parliament assembled at a joint meeting, in accordance with the system of proportional representation by means of single transferable vote and the voting at such elections is by secret ballot.

The Vice President is not a member of either house of Parliament or of a house of legislature of any State. He holds office for a term of five years from the date on which he enters upon his office or until he resigns his office or is removed from his office by a resolution passed by a majority of members of the Rajya Sabha and agreed to by the Lok Sabha. The functions and duties of the Chairperson of the Rajya Sabha are the same as those of the Speaker of the Lok Sabha.

State Legislature

In most respects, state legislatures are similar to the Parliament of India. However, the choice of unicameralism or bicameralism was left to the states, depending on how they weighed the functions of the second chamber compared to the costs involved in running it. Very few states have opted to have bicameral legislature consisting of the Legislative Assembly (Vidhan Sabha) and the Legislative Council (Vidhan Parishad).

The Legislative Assembly of each State is composed of members chosen by direct election on the basis of adult suffrage from territorial constituencies. The size of the Assembly varies from a minimum of 40 to no more than 500. The duration of the Legislative Assembly is for five years. The membership of the Legislative Council shall not be less than 40 but not more than one-third of the total membership of the Assembly. The House is composed of partly elected and partly nominated members. Normally, 1/6 of total members are nominated by the Governor and the rest are indirectly elected on a complicated formula involving graduates, educators and members of the Assembly.

The position of the Council is inferior to that of the Assembly so much so that it may well be considered as unnecessary. A) The very nature of composition of the Legislative Council makes its position weak, being partly elected and partly nominated, and representing various interests. B) Its survival depends on the will of the Assembly, as the latter has the power to abolish the Second Chamber by passing a resolution. C) The Council of Ministers are responsible only to the Assembly and not to the Council. D) As regard any ordinary bill originating in the Assembly, the Council's position is very weak for it can only delay its passage for a limited period. Hence, the second chamber of the State legislature is not a revising body, but a mere dilatory body.

The legislative process in the State Assembly is similar to that in the Parliament with one

significant exception. The Governor can reserve any bill passed by the State legislature for the consideration of the President. Particularly in one case, it is obligatory on the Governor to reserve the bill, i.e., when the bill is derogatory to the powers of the High Court. If the President directs the Governor to return the bill for reconsideration, the Legislature must reconsider the bill within six months and if it is passed again, the bill is presented to the President again. But it shall not be obligatory on the President to give his assent. Thus, it is clear that once the Governor reserves a bill for the President, its subsequent enactment remains with the President and the Governor has no further role in it. Since the Constitution does not put any time limit upon the President either to declare his assent or withhold, the President can keep the bill in cold storage for an indefinite period without revealing his intention.

Decline of Legislature

At present there exists a strong tendency indicating decline of legislature and corresponding enhancement of power of the executive. Several factors have contributed to this decline of the prestige and functioning of the Parliament. Parliament is simply not able to devote its entire time to the details of the legislative measures. It could at best lay down broad policy and leave the rest to be taken up by the executive. Hence all bills contain a clause empowering the government to frame necessary regulations and bye laws. Thus, delegated legislation robs the Parliament to a great extent, the law making power, resulting in the decline in the prestige of the Parliament. The ever-changing political and moral conditions in India are also responsible for the decline of the prestige of the Parliament.

Dominance by the party, the lack of party organisation, the malaise of political defections, corruption and the decline of the morale of politician have all contributed to the erosion of the prestige of the Parliament. A major threat to Parliament in India is posed by the growth of diverse and divisive forces in all the political parties. Both the ruling and opposition parties are prompted more by considerations of expediency and political motives than ideology. The ineffectiveness of the opposition and the lack of a strongly articulated public opinion have added to the erosion of Parliaments position vis a vis the executive headed by the Prime Minister. In theory, we have a parliamentary system where the executive is controlled by the legislature, but in reality, the powers of the legislature have passed into the hands of the executive.

Main difference between Lok Sabha and Rajya Sabha

The major differences between the upper house and lower house of the Parliament are given in brief in the table below:

rence	Lok Sabha	Rajya Sabha
What it is called?	House of People	Council of States
What is the meaning of the name?	House of People, where people who are qualified to vote can elect their representative by way of direct elections	Council of States, where the representatives are indirectly elected by the elected representative of the Assemblies of States and Union Territories
What is the tenure of the house?	It continues for 5 years **Note:** It can be dissolved earlier by passing no-confidence motion	It is a permanent body.
Who heads the house?	Speaker	Vice President of India as the Chairman of the house
What is the minimum age to become a member?	25 years	30 years
What is the strength of the house?	552 members	250 members
What are the functions of the house?	All bills originate in Lok Sabha mostly and after passing through Rajya Sabha, they are returned for Lok Sabha approval. It plays a major role in legislation.	Rajya Sabha has special powers to protect the states' rights against the Union.

Members are there in Lok Sabha and Rajya Sabha:

omposition of Lok Sabha		Composition of Rajya Sabha	
Maximum Strength – 552	530 represent the States	Maximum Strength – 250	**238 elected indirectly** and are representatives of States and Union Territories
	20 are the representatives of Union Territories		**12 are nominated by the President**

	2 are nominated by the President from **Anglo-Indian Community**	Current strength – 245	233 represent states and Union Territories
Current Strength – 545	530 represent States		–
	13 represent Union Territories		12 are nominated by President
	2 are nominated by the President from Anglo-Indian Community		–

How are members elected in Lok Sabha and Rajya Sabha?

The principle of election for both houses is different. There are three kinds of representation in both the houses:

- Representation of States
- Representation of Union Territories
- Nominated Members

Difference between Lok Sabha and Rajya Sabha w.r.t Representation of States	
Lok Sabha	**Rajya Sabha**
• Members are directly elected by the people from the territorial constituencies in the states • Election Principle used – **Universal Adult Franchise** • Eligibility to Vote: Any Indian Citizen of/above 18 years of age **Note**: Voting age was reduced from 21 to 18 years by the 61st Constitutional Amendment Act, 1988	• Members are elected by the elected members of state legislative assemblies • Election Principle used – **Proportional Representation** by means of **Single Transferable Vote** • Allotment of Seats – On the basis of population **Note**: Number of representatives varies from state to state

Difference between Lok Sabha and Rajya Sabha w.r.t Representation of Union Territories	
Lok Sabha	**Rajya Sabha**
• Parliament is empowered to choose the members	• Members are indirectly elected by

from the UTs in any manner as it desires • Election Principle used – **Direct Election** **Note**: **Union Territories (Direct Election to the House of the People) Act, 1965**, has been enacted by which the members of Lok Sabha from the union territories are chosen by direct election.	members of an electoral college specially constituted for the purpose • Election Principle used – **Proportional Representation** by means of **Single Transferable Vote** **Note**: Out of eight UTs, Delhi, Jammu & Kashmir, and Puducherry have representation in Rajya Sabha

Difference between Lok Sabha and Rajya Sabha w.r.t Representation of Nominated Members	
Lok Sabha	**Rajya Sabha**
President nominates 2 members from Anglo-Indian Community if they are not adequately represented **Note:** The provision to nominate Anglo-Indians was extended till 2020 by 95th Amendment Act, 2009	President nominates 12 members from people who special knowledge and practical experience in : • Art • Literature • Science • Social Service

UNIT II

GOVERNMENT OF THE UNION

PART-A

1. State the role of Supreme Commander.

   A commander-in-chief or supreme commander is the person who exercises supreme command and control over armed forces or a military branch.

2. List the three kinds of emergencies that empower constitution of India.

   Types of Emergency:

   - National Emergency
   - Financial Emergency
   - State Emergency

3. Can the President of India recommend a minister?

   Forty-second Amendment of the Constitution of India (1976) made it explicit that the President shall, "act in accordance with such advice". The amendment went into effect from 3 January 1977. But if the Council of Ministers sends the same advice again to the President then the President must accept it.

4. Who is said to be a nominal ruler?

   Something nominal exists only in name. So the nominal ruler in a constitutional monarchy is the king or queen, but the real power is in the hands of the elected prime minister. A fee can be called nominal when it's small in comparison to the value of what it buys.

5. Who has the right to give advice to the President in relation to the appointment of the election commissioner?

   The Election Commission of India nominates or designates an Officer of the Government of the State/Union Territory as the Chief Electoral Officer in consultation with that State Government/Union Territory Administration.

6. What is the Powers of President in India?

   The president is the Supreme Commander of the Indian Armed Forces. The president can declare war or conclude peace, on the advice of the Union Council of Ministers headed by the prime minister. All-important treaties and contracts are made in the president's name.

7. What is the Functions of President in India?

   The primary duty of the president is to preserve, protect and defend the constitution and the law of India as made part of his oath (Article 60 of Indian

constitution). The president is the common head of all independent constitutional entities.

8. What is meant by Legislative Powers and Functions?

   It is the legislature which formulates the will of the state into laws and gives it a legal character. Legislature transforms the demands of the people into authoritative laws/statutes.

9. Write short notes on Financial Powers and Functions.

   Parliament enjoys the supreme authority in financial matters. Executive cannot spend any money without parliament's approval. No tax can be imposed without the authority of law. The government places the budget before the parliament for approval.

10. List out Emergency Powers of the President.

    Emergency powers. The president can declare three types of emergencies: national, state and financial, under articles 352, 356 & 360 in addition to promulgating ordinances under article 123.

11. What is meant by Diplomatic powers?

    Diplomatic powers are those powers that allow the president to form and maintain relationships with foreign countries.

12. What is the Powers of Prime Minister?

    Chairman of the Cabinet: The Prime Minister is the chairman of the cabinet and conducts the meetings of the Cabinet. He can impose his decision if there is a crucial opinion difference and conflict among the members.

13. What is the Functions of Prime Minister?

    The prime minister is the senior-most member of cabinet in the executive of government in a parliamentary system. The prime minister selects and can dismiss members of the cabinet; allocates posts to members within the government; and is the presiding member and chairperson of the cabinet.

PART-B

1. Illustrate the power and function of President in India.
2. In detail, explain the power of Loksaba and Rajyasaba member.
3. Differentiate Loksaba and Rajyasaba member.
4. Define Preemble. Explain the component and objective in preamble.
5. Briefly explain about Initiation of making the constitution
6. Write a case study on facts about Preamble
7. What are the main functions of Prime Minister related to the Council of Ministers? Explain in Detail.
8. List out the open power of Prime minister. Explain in detail.

Unit III

Governments of the States and Local Government

The state executive

State and local governments

The government structure of the states, defined by the constitution, closely resembles that of the union. The executive branch is composed of a governor like the president, a mostly nominal and ceremonial post and a council of ministers, led by the chief minister.

All states have a Vidhan Sabha (Legislative Assembly), popularly elected for terms of up to five years, while a small (and declining) number of states also have an upper house, the Vidhan Parishad (Legislative Council), roughly comparable to the Rajya Sabha, with memberships that may not be more than one-third the size of the assemblies. In these councils, one-sixth of the members are nominated by the governor, and the remainders are elected by various categories of specially qualified voters. State governors are also regarded as members of the legislative assemblies, which they may suspend or dissolve when no party is able to muster a working majority.

Each Indian state is organized into a number of districts, which are divided for certain administrative purposes into units variously known as tahsils, taluqs, or subdivisions. These are further divided into community development blocks, each typically consisting of about 100 villages. Superimposed on these units is a three-tiered system of local government. At the lowest level, each village elects its own governing council (gram pancayat). The chairman of a gram pancayat is also the village representative on the council of the community development block (pancayat samiti). Each pancayat samiti, in turn, selects a representative to the district-level council (zila parishad). Separate from this system are the municipalities, which generally are governed by their own elected councils.

From the state down to the village, government appointees administer the various government departments and agencies. Financial grants from higher levels, often made on a matching basis, provide developmental incentives and facilitate the execution of desired projects. Approving, withholding, or manipulating grants, however, often serves as a lever for the accumulation of personal power and as a vehicle of corruption.

State Government

In a federal form of government, the state government is the government of a country's subdivisions and shares political power with the national government.

In the Constitution of India, which is a sovereign socialist secular democratic republic, the country has three levels of governments: the Central, the States and the Union Territories, besides the third level of governments, comprising the panchayats in rural areas and municipalities in urban areas. In India, the state governments are the level of government below the central government. Each state of the country is governed by the state government. There are 29 state governments in our country, each of which is headed by the governor and the chief minister. The CM also heads the council of ministers.

General Structure

Structure of the state government

Executive: State Executive comprises the governor and the chief minister with his council of Ministers. The Governor of each state is appointed by the President for a period of five years. Executive power of the state is vested in the governor. But the actual powers for proper functioning of the state are vested in the CM and his council of ministers.

Judiciary: State high courts have jurisdiction over the whole state. In the states, the judicial setup is headed by the chief justice. He manages and controls the entire judicial system of the state pertaining to criminal, civil and all other forms of litigation. State high courts have to, however, report to the Supreme Court of India, which may override the high court's findings and judgments.

Legislature: Each state has a legislative assembly. It consists of the governor and one House or two Houses, as the case may be. In seven states, the state government's legislature is bicameral. These states are Bihar, Andhra Pradesh, Telangana, Jammu and Kashmir, Karnataka, Maharashtra and Uttar Pradesh. These states have two Houses known as legislative council and legislative assembly. The rest of the states are unicameral. There is only one House known as legislative assembly. State Legislature or State Assemblies are headed by the CM.

Legislature has two divisions Vidhan Parishad or Legislative Council

- Not more than one-third of total number of members or 40 members in legislative assembly of the state, except in J&K with 36 members.
- Elected members are called Member of Legislative Council (MLC)
- Elected by Governor, MLAs, standing graduates etc.
- No MLC can be member of Cabinet of Ministers.

Vidhan Sabha or Legislative Assembly

- Not more than 500 and not less than 60 members (an exception is the Legislative Assembly of Sikkim. It has 32 members)
- Fixed number of seats in every state.

- Different number of seats for different states
- Elected members are called Members of Legislative Assembly (MLA)
- Elected by the people of that state

Roles and Responsibilities of the state governments

State governments have separate departments for proper functioning of the state. States have jurisdiction over education, agriculture, public health, sanitation, hospitals and dispensaries and many other departments.

- **Internal security:** The state governments have to maintain the internal security, law and order in the state. Internal security is managed through state police.
- **Public order:** States have jurisdiction over police and public order
- **Education:** Providing a public education system, maintaining school buildings and colleges, employment of teachers, providing help to under privileged students all come under the education department of the state.
- **Agriculture:** The state governments have to provide support for farmers, funds for best farming practices, disease prevention and aid during disasters such as floods or droughts.
- **Finances:** State legislature handles the financial powers of the state, which include authorisation of all expenditure, taxation and borrowing by the state government. It has the power to originate money bills. It has control over taxes on entertainment and wealth, and sales tax.
- **Reservation of bills:** The state governor may reserve any bill for the consideration of the President.
- **Transport:** State government runs the rains, trams, bus and ferry services and other public transportation in the cities and towns of the States.
- **Water supply:** Water supply to cities and towns for drinking, including irrigation for farmers, is the responsibility of the State governments.
- **Budget:** State governments make budget for state.
- **Allocation of funds:** It has the power to give funds to all its organizations like Zila Parishad, corporation, and other departments.

Structure

There are generally three basic **models for the organization of a governor's office**:

- **Strict Hierarchy** – All staff report to the governor through the chief of staff.

- **Limited Hierarchy** – The chief of staff serves as primary coordinator but one or more other senior staff have direct access to the governor in specific areas of responsibility.
- **"Spokes of the Wheel"** – Several senior staff members report directly to the governor and the governor provides detailed direction and coordination as needed.

Functions

State-by-state differences notwithstanding, there is a common set of functions that support each governor, including policy development, legal counsel, legislative relations, communications, appointments, scheduling, intergovernmental relations, emergency management/homeland security, and administrative support for the governor and his or her spouse. In turn, these functions are fulfilled by specialized staff, who are assigned primarily to the governor's office. Almost all governors have designated a chief of staff to serve as one of their principal advisors and, in many states, to manage the overall governor's office.

In some states the position of budget director falls within the governor's office, while in others it is assigned to manage a separate executive branch agency. Other senior staffs in the governor's office are likely to include the policy director and communications director or press secretary. In some states, senior staff also includes the legislative director, appointments director, legal counsel, scheduler, and governor's secretary.

Governor

1. Governor in the Government of States

The Governor is the constitutional head of a state, similar to the President at the national level.

a) Role and Position

- Acts as the nominal executive of the state.
- Exercises powers on the advice of the Council of Ministers headed by the Chief Minister (Article 163).
- Appoints the Chief Minister and other ministers.
- Has powers like summoning the State Legislature, giving assent to bills, and reserving certain bills for the President's consideration.

b) Powers of the Governor

1. Executive Powers: Appointment of ministers, state officials, and functionaries.
2. Legislative Powers: Summoning, proroguing, and dissolving the State Legislative Assembly; giving assent to bills.
3. Discretionary Powers: Can act without the advice of the Council of Ministers in special cases, like recommending President's Rule in the state.

c) Importance

- Ensures constitutional governance in the state.
- Acts as a link between the state and the central government.

2. Local Government in India

Local governments are the third tier of governance in India, established to ensure decentralized administration. They are of two types:

a) Panchayati Raj (Rural Local Government)

- Governed under Article 243.
- Includes Gram Panchayats, Panchayat Samitis, and Zilla Parishads.
- Responsible for local administration, rural development, sanitation, and basic services.
- Ensures people's participation in governance.

b) Municipalities (Urban Local Government)

- Governed under Article 243Q.
- Includes Municipal Corporations, Municipal Councils, and Nagar Panchayats.
- Responsible for urban planning, water supply, public health, waste management, and civic amenities.

c) Importance

- Promotes decentralization and democracy at the grassroots level.
- Ensures efficient delivery of services and local development.
- Strengthens citizen participation in governance.

In Relation to the Council of Ministers

The Chief Minister is the head of state council of ministers. He performs the following functions:

1. He recommends to the governor on who to appoint as ministers
2. He designates or reshuffles the portfolios of the ministers
3. He can ask a minister to resign
4. Meeting of the council of ministers is headed by him
5. All activities of the ministers are guided and controlled by the Chief Minister
6. If he resigns, the entire council of ministers collapses.

In Relation to the Governor

In relation to the governor, the Chief Minister performs the following functions:

1. All the activities, decisions that are taken up by the council of ministers are communicated to the governor by the chief minister

2. To report to the governor, information about the administrative affairs if and when asked by the governor
3. If any minister has decided on any issue, the same has to be reported to the Governor by the Chief Minister when the same has not been considered by the council.
4. He gives his advice to the governor for the appointment of the following persons:
   - Advocate-General
   - Chairman of state public service commission
   - The state election commission, etc.

In Relation to the State Legislature

He is the leader of the house and holding this position, he performs the following functions:

1. Before a governor prorogues and summons the sessions of the state legislature, the Chief Minister's advice is a must
2. Legislative Assembly can be dissolved at any time on his recommendation to the governor
3. All government policies are announced by him on the floor of the house.

Composition of Council of Ministers

The size of the council is not mentioned in the Indian Constitution. Chief Minister decides the size and the rank of the ministers as per the requirement in the State Legislature.

There are three categories of Council of Ministers:

1. Cabinet Ministers
2. Ministers of State
3. Deputy Ministers

Local Government

Local governments generally include two tiers: counties, also known as boroughs in Alaska and parishes in Louisiana, and municipalities, or cities/towns. In some States, counties are divided into townships. Municipalities can be structured in many ways, as defined by State constitutions, and are called, variously, townships, villages, boroughs, cities, or towns. Various kinds of districts also provide functions in local government outside county or municipal boundaries, such as school districts or fire protection districts.

Municipal governments—those defined as cities, towns, boroughs (except in Alaska), villages, and townships—are generally organized around a population center and in most

cases correspond to the geographical designations used by the United States Census Bureau for reporting of housing and population statistics. Municipalities vary greatly in size, from the millions of residents of New York City and Los Angeles to the few hundred people who live in Jenkins, Minnesota.

Municipalities generally take responsibility for parks and recreation services, police and fire departments, housing services, emergency medical services, municipal courts, transportation services (including public transportation), and public works (streets, sewers, snow removal, signage, and so forth).

Whereas the Federal Government and State governments share power in countless ways, a local government must be granted power by the State. In general, mayors, city councils, and other governing bodies are directly elected by the people.

Types of Local Governments

Local governments are generally organized into four types:

- Counties. Counties are usually the largest political subdivisions, and their primary function is to administer state laws within their borders. Among other duties, they keep the peace, maintain jails, collect taxes, build and repair roads and bridges, and record deeds, marriages, and deaths. Elected officials called Supervisors or Commissioners usually lead counties.
- Townships. These units of government do not exist in about half the states, and they have different responsibilities in those that have them. A township may simply be another name for a town or city, or it may be a subdivision of a county.
- Special Districts. These units of government have special functions. The best known example is the local school district, but other types are growing in numbers, especially in heavily populated areas where county and city governments may be overloaded with work.
- Municipalities. City, town, or borough governments get their authority to rule only as it is granted by the state. Today about 80% of the American population lives in municipalities, and municipal governments affect the lives of many citizens. Municipalities may have elected mayors, or they may be managed by appointed city managers.

THE PANCHAYATS

Definitions.

a. "district" means a district in a State;
b. "Gram Sabha" means a body consisting of persons registered in the electoral rolls relating to a village comprised within the area of Panchayat at the village level;
c. "intermediate level" means a level between the village and district levels specified by the Governor of a State by public notification to be the intermediate level for the purposes of this Part;
d. "Panchayat" means an institution (by whatever name called) of self-government constituted under article 243B, for the rural areas;
e. "Panchayat area" means the territorial area of a Panchayat;
f. "Population" means the population as ascertained at the last preceding census of which the relevant figures have been published;
g. "village" means a village specified by the Governor by public notification to be a village for the purposes of this Part and includes a group of villages so specified.

Gram Sabha.

A Gram Sabha may exercise such powers and perform such functions at the village level as the Legislature of a State may, by law, provide.

Constitution of Panchayats.

(1) There shall be constituted in every State, Panchayats at the village, intermediate and district levels in accordance with the provisions of this Part.

(2) Notwithstanding anything in clause

(3), Panchayats at the intermediate level may not be constituted in a State having a population not exceeding twenty lakhs

Composition of Panchayats

a) Subject to the provisions of this Part, the Legislature of a State may, by law, make provisions with respect to the composition of Panchayats: Provided that the ratio between the population of the territorial area of a Panchayat at any level and the number of seats in such Panchayat to be filled by election shall, so far as practicable, be the same throughout the State.
b) All the seats in a Panchayat shall be filled by persons chosen by direct election from territorial constituencies in the Panchayat area and, for this purpose, each Panchayat area shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it shall, so far as practicable, be the same throughout the Panchayat area.

c) The Legislature of a State may, by law, provide for the representation

I. of the Chairpersons of the Panchayats at the village level, in the Panchayats at the intermediate level or, in the case of a State not having Panchayats at the intermediate level, in the Panchayats at the district level;

II. of the Chairpersons of the Panchayats at the intermediate level, in the Panchayats at the district level;

III. of the members of the House of the People and the members of the Legislative Assembly of the State representing constituencies which comprise wholly or partly a Panchayat area at a level other than the village level, in such Panchayat;

IV. of the members of the Council of States and the members of the Legislative Council of the State, where they are registered as electors within

(i) a Panchayat area at the intermediate level, in Panchayat at the intermediate level;

(ii) a Panchayat area at the district level, in Panchayat at the district level.

(4) The Chairperson of a Panchayat and other members of a Panchayat whether or not chosen by direct election from territorial constituencies in the Panchayat area shall have the right to vote in the meetings of the Panchayats.

(5) The Chairperson of

(a) a panchayat at the village level shall be elected in such manner as the Legislature of a State may, by law, provide; and

(b) a Panchayat at the intermediate level or district level shall be elected by, and from amongst, the elected members thereof.

Disqualifications for membership

(1) A person shall be disqualified for being chosen as, and for being, a member of a Panchayat

(a) if he is so disqualified by or under any law for the time being in force for the purposes of elections to the Legislature of the State concerned: Provided that no person shall be disqualified on the ground that he is less than twenty-five years of age, if he has attained the age of twenty-one years;

(b) if he is so disqualified by or under any law made by the Legislature of the State.

(2) If any question arises as to whether a member of a Panchayat has become subject to any of the disqualifications mentioned in clause (1), the question shall be referred for the decision of such authority and in such manner as the Legislature of a State may, by law, provide.

Powers, authority and responsibilities of Panchayats

Subject to the provisions of this Constitution, the Legislature of a State may, by law, endow the Panchayats with such powers and authority as may be necessary to enable them to function as institutions of self-government and such law may contain provisions for the devolution of powers and responsibilities upon Panchayats at the appropriate level, subject to such conditions as may be specified therein, with respect to—

(a) the preparation of plans for economic development and social justice;

(b) the implementation of schemes for economic development and social justice as may be entrusted to them including those in relation to the matters listed in the Eleventh Schedule

Powers to impose taxes by, and Funds of, the Panchayats.—The Legislature of a State may, by law,—

(a) Authorise a Panchayat to levy, collect and appropriate such taxes, duties, tolls and fees in accordance with such procedure and subject to such limits;

(b) Assign to a Panchayat such taxes, duties, tolls and fees levied and collected by the State Government for such purposes and subject to such conditions and limits;

(c) Provide for making such grants-in-aid to the Panchayats from the Consolidated Fund of the State; and

(d) Provide for constitution of such Funds for crediting all moneys received, respectively, by or on behalf of the Panchayats and also for the withdrawal of such moneys therefrom, as may be specified in the law.

243J. Audit of accounts of Panchayats

The Legislature of a State may, by law, make provisions with respect to the maintenance of accounts by the Panchayats and the auditing of such accounts.

243K. Elections to the Panchayats

(1) The superintendence, direction and control of the preparation of electoral rolls for, and the conduct of, all elections to the Panchayats shall be vested in a State Election Commission consisting of a State Election Commissioner to be appointed by the Governor.

(2) Subject to the provisions of any law made by the Legislature of a State, the conditions of service and tenure of office of the State Election Commissioner shall be such as the Governor may by rule determine:

THE MUNICIPALITIES

Definitions.

In this Part, unless the context otherwise requires,—

(a) "Committee" means a Committee constituted under article 243S;

(b) “district” means a district in a State;

(c) “Metropolitan area” means an area having a population of ten lakhs or more, comprised in one or more districts and consisting of two or more Municipalities or Panchayats or other contiguous areas, specified by the Governor by public notification to be a Metropolitan area for the purposes of this Part;

(d) “Municipal area” means the territorial area of a Municipality as is notified by the Governor;

(e) “Municipality” means an institution of self-government constituted under article 243Q;

(f) “Panchayat” means a Panchayat constituted under article 243B;

(g) “population” means the population as ascertained at the last preceding census of which the relevant figures have been published.

243Q. Constitution of Municipalities.

(1) There shall be constituted in every State,

a. a Nagar Panchayat (by whatever name called) for a transitional area, that is to say, an area in transition from a rural area to an urban area;
b. a Municipal Council for a smaller urban area; and
c. a Municipal Corporation for a larger urban area,in accordance with the provisions of this Part:

Provided that a Municipality under this clause may not be constituted in such urban area or part thereof as the Governor may, having regard to the size of the area and the municipal services being provided or proposed to be provided by an industrial establishment in that area and such other factors as he may deem fit, by public notification, specify to be an industrial township.

(2) In this article, “a transitional area”, “a smaller urban area” or “a larger urban area” means such area as the Governor may, having regard to the population of the area, the density of the population therein, the revenue generated for local administration, the percentage of employment in non-agricultural activities, the economic importance or such other factors as he may deem fit, specify by public notification for the purposes of this Part.

243 R. Composition of Municipalities.

a) Save as provided in clause (2) all the seats in a Municipality shall be filled by persons chosen by direct election from the territorial constituencies in the Municipal area and for this purpose each Municipal area shall be divided into territorial constituencies to be known as wards.

(a) The Legislature of a State may, by law, provide

(b) for the representation in a Municipality of

(c) Persons having special knowledge or experience in Municipal administration;

(d) The members of the House of the People and the members of the Legislative Assembly of the

b) State representing constituencies which comprise wholly or partly the Municipal area;

c) The members of the Council of States and the members of the Legislative Council of the

d) State registered as electors within the Municipal area;

(a) the Chairpersons of the Committees constituted under clause (5) of article 243S:

e) Provided that the persons referred to in paragraph (i) shall not have the right to vote in the meetings of the Municipality;

(a) the manner of election of the Chairperson of a Municipality.

243S. Constitution and composition of Wards Committees, etc.

(1) There shall be constituted Wards Committees, consisting of one or more wards, within the territorial area of a Municipality having a population of three lakhs or more

(2) The Legislature of a State may, by law, make provision with respect to

(a) the composition and the territorial area of a Wards Committee;

(b) the manner in which the seats in a Wards Committee shall be filled.

(3) A member of a Municipality representing a ward within the territorial area of the Wards Committee shall be a member of that Committee.

(4) Where a Wards Committee consists of

(a) one ward, the member representing that ward in the Municipality; or

(b) two or more wards, one of the members representing such wards in the Municipality elected by the members of the Wards Committee, shall be the Chairperson of that Committee.

(5) Nothing in this article shall be deemed to prevent the Legislature of a State from making any provision for the constitution of Committees in addition to the Wards Committees.

243T. Reservation of seats.

(1) Seats shall be reserved for the Scheduled Castes and the Scheduled Tribes in every Municipality and the number of seats so reserved shall bear, as nearly as may be, the same proportion to the total number of seats to be filled by direct election in that Municipality as the population of the Scheduled Castes in the Municipal area or of the Scheduled Tribes in the Municipal area bears to the total population of that area and such seats may be allotted by rotation to different constituencies in a Municipality.

(2) Not less than one-third of the total number of seats reserved under clause (1) shall be reserved for women belonging to the Scheduled Castes or, as the case may be, the Scheduled Tribes.

(3) Not less than one-third (including the number of seats reserved for women belonging to the Scheduled Castes and the Scheduled Tribes) of the total number of seats to be filled by direct election in every Municipality shall be reserved for women and such seats may be allotted by rotation to different constituencies in a Municipality.

(4) The offices of Chairpersons in the Municipalities shall be reserved for the Scheduled Castes, the Scheduled Tribes and women in such manner as the Legislature of a State may, by law, provide.

(5) The reservation of seats under clauses (1) and (2) and the reservation of offices of Chairpersons (other than the reservation for women) under clause (4) shall cease to have effect on the expiration of the period specified in article 334.

(6) Nothing in this Part shall prevent the Legislature of a State from making any provision for reservation of seats in any Municipality or offices of Chairpersons in the Municipalities in favour of backward class of citizens.

243U. Duration of Municipalities, etc.

(1) Every Municipality, unless sooner dissolved under any law for the time being in force, shall continue for five years from the date appointed for its first meeting and no longer: Provided that a Municipality shall be given a reasonable opportunity of being heard before its dissolution.

(2) No amendment of any law for the time being in force shall have the effect of causing dissolution of a Municipality at any level, which is functioning immediately before such amendment, till the expiration of its duration specified in clause (1).

(3) An election to constitute a Municipality shall be completed,—

(a) before the expiry of its duration specified in clause (1);

(b) before the expiration of a period of six months from the date of its dissolution:

Provided that where the remainder of the period for which the dissolved Municipality would have continued is less than six months, it shall not be necessary to hold any election under this clause for constituting the Municipality for such period.

(4) A Municipality constituted upon the dissolution of a Municipality before the expiration of its duration shall continue only for the remainder of the period for which the dissolved Municipality would have continued under clause (1) had it not been so dissolved.

243V. Disqualifications for membership.—

(1) A person shall be disqualified for being chosen as, and for being, a member of a Municipality

(a) if he is so disqualified by or under any law for the time being in force for the purposes of elections to the Legislature of the State concerned:

(b) Provided that no person shall be disqualified on the ground that he is less than twenty-five years of age, if he has attained the age of twenty-one years;

(b) if he is so disqualified by or under any law made by the Legislature of the State.

(2) If any question arises as to whether a member of a Municipality has become subject to any of the disqualifications mentioned in clause (1), the question shall be referred for the decision of such authority and in such manner as the Legislature of a State may, by law, provide.

243W. Powers, authority and responsibilities of Municipalities, etc.—Subject to the provisions of this Constitution, the Legislature of a State may, by law, endow—

(a) the Municipalities with such powers and authority as may be necessary to enable them to function as institutions of self-government and such law may contain provisions for the devolution of powers and responsibilities upon Municipalities, subject to such conditions as may be specified therein, with respect to

(i) the preparation of plans for economic development and social justice;

(ii) the performance of functions and the implementation of schemes as may be entrusted to them including those in relation to the matters listed in the Twelfth Schedule;

(b) the Committees with such powers and authority as may be necessary to enable them to carry out the responsibilities conferred upon them including those in relation to the matters listed in the Twelfth Schedule.

243X. Power to impose taxes by, and Funds of, the Municipalities.—The Legislature of a State may, by law,—

(a) authorise a Municipality to levy, collect and appropriate such taxes, duties, tolls and fees in accordance with such procedure and subject to such limits;

(b) assign to a Municipality such taxes, duties, tolls and fees levied and collected by the State Government for such purposes and subject to such conditions and limits;

(c) provide for making such grants-in-aid to the Municipalities from the Consolidated Fund of the State; and

(d) provide for constitution of such Funds for crediting all moneys received, respectively, by or on behalf of the Municipalities and also for the withdrawal of such moneys therefrom, as may be specified in the law.

243Y. Finance Commission.

(1) The Finance Commission constituted under article 243-I shall also review the financial position of the Municipalities and make recommendations to the Governor as to—

(a) the principles which should govern

(i) the distribution between the State and the Municipalities of the net proceeds of the taxes, duties, tolls and fees leviable by the State, which may be divided between them under this Part and the allocation between the Municipalities at all levels of their respective shares of such proceeds;

(ii) the determination of the taxes, duties, tolls and fees which may be assigned to, or appropriated by, the Municipalities;

(iii) the grants-in-aid to the Municipalities from the Consolidated Fund of the State;

(b) the measures needed to improve the financial position of the Municipalities;

(c) any other matter referred to the Finance Commission by the Governor in the interests of sound finance of the Municipalities.

(2) The Governor shall cause every recommendation made by the Commission under this article together with an explanatory memorandum as to the action taken thereon to be laid before the Legislature of the State.

243Z. Audit of accounts of Municipalities.

The Legislature of a State may, by law, make provisions with respect to the maintenance of accounts by the Municipalities and the auditing of such accounts.

243ZA. Elections to the Municipalities.

(1) The superintendence, direction and control of the preparation of electoral rolls for, and the conduct of, all elections to the Municipalities shall be vested in the State Election Commission referred to in article 243K.

(2) Subject to the provisions of this Constitution, the Legislature of a State may, by law, make provision with respect to all matters relating to, or in connection with, elections to the Municipalities.

243ZB. Application to Union territories.—The provisions of this Part shall apply to the Union territories and shall, in their application to a Union territory, have effect as if the references to the Governor of a State were references to the Administrator of the Union territory appointed under article 239 and references to the Legislature or the Legislative Assembly of a State were references in relation to a Union territory having a Legislative Assembly, to that Legislative Assembly:

Provided that the President may, by public notification, direct that the provisions of this Part shall apply to any Union territory or part thereof subject to such exceptions and modifications as he may specify in the notification.

243ZC. Part not to apply to certain areas.

(1) Nothing in this Part shall apply to the Scheduled Areas referred to in clause (1), and the tribal areas referred to in clause (2), of article 244.

(2) Nothing in this Part shall be construed to affect the functions and powers of the Darjeeling Gorkha Hill Council constituted under any law for the time being in force for the hill areas of the district of Darjeeling in the State of West Bengal.

(3) Notwithstanding anything in this Constitution, Parliament may, by law, extend the provisions of this Part to the Scheduled Areas and the tribal areas referred to in clause (1) subject to such exceptions and modifications as may be specified in such law, and no such law shall be deemed to be an amendment of this Constitution for the purposes of article 368.

243ZD. Committee for district planning.

(1) There shall be constituted in every State at the district level a District Planning Committee to consolidate the plans prepared by the Panchayats and the Municipalities in the district and to prepare a draft development plan for the district as a whole.

(2) The Legislature of a State may, by law, make provision with respect to

(a) the composition of the District Planning Committees;

(b) the manner in which the seats in such Committees shall be filled: Provided that not less than four-fifths of the total number of members of such Committee shall be elected by, and from amongst, the elected members of the Panchayat at the district level and of the Municipalities in the district in proportion to the ratio between the population of the rural areas and of the urban areas in the district;

(c) the functions relating to district planning which may be assigned to such Committees;

(d) the manner in which the Chairpersons of such Committees shall be chosen.

(3) Every District Planning Committee shall, in preparing the draft development plan,

(a) have regard to

(i) matters of common interest between the Panchayats and the Municipalities including spatial planning, sharing of water and other physical and natural resources, the integrated development of infrastructure and environmental conservation;

(ii) the extent and type of available resources whether financial or otherwise;

(b) consult such institutions and organisations as the Governor may, by order, specify.

(4) The Chairperson of every District Planning Committee shall forward the development plan, as recommended by such Committee, to the Government of the State.

243ZE. Committee for Metropolitan planning.

(1) There shall be constituted in every Metropolitan area a Metropolitan Planning Committee to prepare a draft development plan for the Metropolitan area as a whole.

(2) The Legislature of a State may, by law, make provision with respect to—

(a) the composition of the Metropolitan Planning Committees;

(b) the manner in which the seats in such Committees shall be filled: Provided that not less than two-thirds of the members of such Committee shall be elected by, and from amongst, the elected members of the Municipalities and Chairpersons of the Panchayats in the Metropolitan area in proportion to the ratio between the population of the Municipalities and of the Panchayats in that area;

(c) the representation in such Committees of the Government of India and the Government of the State and of such organisations and Institutions as may be deemed necessary for carrying out the functions assigned to such Committees;

(d) the functions relating to planning and coordination for the Metropolitan area which may be assigned to such Committees;

(e) the manner in which the Chairpersons of such Committees shall be chosen.

(3) Every Metropolitan Planning Committee shall, in preparing the draft development plan,

(a) have regard to

(i) the plans prepared by the Municipalities and the Panchayats in the Metropolitan area;

(ii) matters of common interest between the Municipalities and the Panchayats, including co- ordinated spatial planning of the area, sharing of water and other physical and natural resources, the integrated development of infrastructure and environmental conservation;

(iii) the overall objectives and priorities set by the Government of India and the Government of the State;

(iv) the extent and nature of investments likely to be made in the Metropolitan area by agencies of the Government of India and of the Government of the State and other available resources whether financial or otherwise;

(b) consult such institutions and organisations as the Governor may, by order, specify.

(4) The Chairperson of every Metropolitan Planning Committee shall forward the development plan, as recommended by such Committee, to the Government of the State.

243ZF. Continuance of existing laws and Municipalities.

Notwithstanding anything in this Part, any provision of any law relating to Municipalities in force in a State immediately before the commencement of the Constitution (Seventy-fourth Amendment) Act, 1992, which is inconsistent with the provisions of this Part, shall continue to be in force until amended or repealed by a competent Legislature or other competent authority or until the expiration of one year from such commencement, whichever is earlier: Provided that all the Municipalities existing immediately before such commencement shall continue till the expiration of their duration, unless sooner dissolved by a resolution passed to that effect by the Legislative Assembly of that State or, in the case of a State having a Legislative Council, by each House of the Legislature of that State.

243ZG. Bar to interference by courts in electoral matters.Notwithstanding anything in this Constitution,

(a) the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies, made or purporting to be made under article 243ZA shall not be called in question in any court;

(b) no election to any Municipality shall be called in question except by an election petition presented to such authority and in such manner as is provided for by or under any law made by the Legislature of a State.

UNIT III

GOVERNMENTS OF THE STATES AND LOCAL GOVERNMENT

PART-A

1. What are the three categories of council of ministers?
   - Cabinet
   - Ministry of State and
   - Deputy Ministers.
2. Define state legislature.

   The State Legislature consists of the Governor, the Legislative Council (Vidhan Parishad) and the Legislative Assembly (Vidhan Sabha). In most of the States there are unicameral Legislatures. These State Legislatures consist of the Governor and the Legislative Assembly.
3. State Panchayat.
   a. "district" means a district in a State;
   b. "Gram Sabha" means a body consisting of persons registered in the electoral rolls relating to a village comprised within the area of Panchayat at the village level;
4. Differentiate Panchayat and Grama Shaba.

Gram Panchayat	Gram Sabha
➢ Gram Panchayat is the lower element of the Panchayati Raj that functions at the village level with the welfare and development of the village in mind	➢ Gram Sabha is the legislative body that operates at the village level and takes into account the annual budget and audit reports of the Gram Panchayat
➢ It is a temporary body, as the members of the panchayat are elected for a term of five years.	➢ It is a permanent body
➢ The Gram Panchayat consists of ward members and Sarpanch	➢ The Gram Sabha consists of every person whose name is registered in the voter list of the perspective village
➢ The members of the Gram Panchayat are directly elected by the members of the Gram Sabha	➢ The members of Gram Sabha are not elected
➢ Every month a meeting is organized by the gram panchayat. The functions of the Gram Panchayat may bifurcate as obligatory and optional functions. The obligatory functions include civic roles such as sanitation, drains and ponds,	➢ The decisions taken by the Gram Sabha cannot be annulled by any other body. The power to do so rests with the Gram Sabha only

5. How is the election for Panchayat done?

All the seats in a Panchayat shall be filled by persons chosen by direct election from territorial constituencies in the Panchayat area. The electorate has been named Grama Sabha consisting of persons registered in the electoral rolls relating to a village comprised within the area of a Panchayat.

6. Write about Structure of the state government.

State Executive consists of Governor and the Council of Ministers with the Chief Minister as its head. The Governor of a state is appointed by the President for a term of five years and holds office during his pleasure.

7. Define Judiciary.

The judiciary is the branch of authority in a country which is concerned with law and the legal system.

8. What are the two divisions of Legislature?

- Unicameral
- Bicameral.

9. What is the role of State Governments?

In general, state governments are responsible for regulating trade within state borders and for establishing regulations for local corporations. State governments also administer to the needs of the many smaller local governments by establishing charters for county and city government.

10. Write short notes on Local Government.

Local government is a generic term for the lowest tiers of public administration within a particular sovereign state Local governments generally act only within powers specifically delegated to them by law and/or directives of a higher level of government.

11. What are the types of Local Governments?

- Panchayati Raj Or Gram Panchayat.
- Block Samiti.
- Zila Parishad.

12. Write about Constitution of Panchayats.

The Constitution (73rd Amendment) Act, 1992 has added a new part IX consisting of 16 Articles and the Eleventh Schedule to the Constitution. The 73th Amendment envisages the Gram Sabha as the foundation of the Panchayat Raj System to perform functions and powers entrusted to it by the State Legislatures.

13. Write about Composition of Panchayats.

The block development officer, members of the state's legislative assembly, members of parliament belonging to that area, otherwise unrepresented groups (Scheduled Castes, Scheduled Tribes and women), associate members (such as a farmer)

PART-B

1. In detail, explain the State government and structure of state government.
2. Briefly explain the role and responsibilities of State government with an example.
3. How Chief Minister is related with Council of ministers and Governors?
4. Summarize the following
   (i) Panchayat
   (ii) Constitution of Panchayat
   (iii) Composition of Panchayat
5. Decribe the Powers, authority and responsibilities of Panchayats
6. Summarize the following
   (i)Municipality
   (ii)Constitution of Municipality
   (iii)Composition of Municipality
7. Explain the structure of Judiciary with necessary diagram

UNIT IV
JUDICATURE

INTRODUCTION
Organization

Many times, courts are seen only as arbitrators in disputes between individuals or private parties. But judiciary performs some political functions also. Judiciary is an important organ of the government. The Supreme Court of India is in fact, one of the very powerful courts in the world. Right from 1950 the judiciary has played an important role in interpreting and in protecting the Constitution.

In this chapter you will study the role and importance of the judiciary. In the chapter on fundamental rights you have already read that the judiciary is very important for protecting our rights. After studying this chapter, you would be able to understand

- the meaning of independence of judiciary;
- the role of Indian Judiciary in protecting our rights;
- the role of the Judiciary in interpreting the Constitution; and
- the relationship between the Judiciary and the Parliament of India.

WHY DO WE NEED AN INDEPENDENT JUDICIARY?

In any society, disputes are bound to arise between individuals, between groups and between individuals or groups and government. All such disputes must be settled by an independent body in accordance with the principle of rule of law. This idea of rule of law implies that all individuals — rich and poor, men or women, forward or backward castes — are subjected to the same law. The principal role of the judiciary is to protect rule of law and ensure supremacy of law. It safeguards rights of the individual, settles disputes in accordance with the law and ensures that democracy does not give way to individual or group dictatorship. In order to be able to do all this, it is necessary that the judiciary is independent of any political pressures.

What is meant by an independent judiciary? How is this independence ensured?

INDEPENDENCE OF THE JUDICIARY

Simply stated independence of judiciary means that

- the other organs of the government like the executive and legislature must not restrain the

functioning of the judiciary in such a way that it is unable to do justice.

- the other organs of the government should not interfere with the decision of the judiciary.
- judges must be able to perform their functions without fear or favour.

Independence of the judiciary does not imply arbitrariness or absence of accountability. Judiciary is a part of the democratic political structure of the country. It is therefore accountable to the Constitution, to the democratic traditions and to the people of the country. How can the independence of judiciary be provided and protected?

The Indian Constitution has ensured the independence of the judiciary through a number of measures. The legislature is not involved in the process of appointment of judges. Thus, it was believed that party politics would not play a role in the process of appointments. In order to be appointed as a judge, a person must have experience as a lawyer and/or must be well versed in law. Political opinions of the person or his/ her political loyalty should not be the criteria for appointments to judiciary.

The judges have a fixed tenure. They hold office till reaching the age of retirement. Only in exceptional cases, judges may be removed. But otherwise, they have security of tenure. Security of tenure ensures that judges could function without fear or favour. The Constitution prescribes a very difficult procedure for removal of judges. The Constitution makers believed that a difficult procedure of removal would provide security of office to the members of judiciary.

The judiciary is not financially dependent on either the executive or legislature. The Constitution provides that the salaries and allowances of the judges are not subjected to the approval of the legislature. The actions and decisions of the judges are immune from personal criticisms. The judiciary has the power to penalise those who are found guilty of contempt of court. This authority of the court is seen as an effective protection to the judges from unfair criticism. Parliament cannot discuss the conduct of the judges except when the proceeding to remove a judge is being carried out. This gives the judiciary independence to adjudicate without fear of being criticised.

The Constitution has made provisions so as to maintain independence of the Judiciary.

1. Composition of Judiciary:

Art124 of the constitution provides that there shall be supreme court of India with consisting of chief Justice and seven judges. Further it says Parliament by law may increase the number of judges. The supreme court of present comprises 25 judges including chief Justice of India.

2. Constitution:

Here is the **Constitution of the Judiciary in the Constitution of India – in very simple form**:

⭑ **Judiciary in the Constitution of India (Simple Explanation)**

The Constitution of India creates a **strong, independent, and unified judiciary** to protect justice, rights, and the Constitution itself.

It has **three levels**:

1. Supreme Court (Top Court of India)

- Highest court in the country
- Can solve disputes between states, or between Centre and states
- Can hear appeals from High Courts
- Can protect Fundamental Rights (Article 32)
- Its decisions are final and binding on all other courts

2. High Courts (State-Level Courts)

- One High Court for each state or group of states
- Can hear appeals from lower courts
- Can also protect Fundamental Rights (Article 226)
- Supervises all lower courts in the state

3. Subordinate Courts (District & Lower Courts)

- District courts, civil courts, criminal courts, etc.
- Deal with most common cases of people
- Controlled by the High Court of that state

Main Principles of Judiciary in the Constitution

✓ **Independent Judiciary**

The judiciary is free from government pressure or influence.

✓ **Single Integrated System**

All courts are connected; one uniform system for the whole country.

✓ **Judicial Review**

Courts can check if laws or actions of government violate the Constitution.

✓ **Protects Fundamental Rights**

Through writs and judgments, courts safeguard people's rights.

Important Articles (Very Simple)

- **Article 32** – Supreme Court protects rights
- **Articles 124–147** – Supreme Court
- **Articles 214–231** – High Courts
- **Articles 233–237** – Subordinate Courts
- **Article 50** – Judiciary must be separate from the executive

3. Appointment of Judges:

Art 124 (2) Provides that judge of supreme court shall be appointed by the president of India after consultation with the Judges of the supreme court and of the High courts. In case of chief Justice appointment the president may not consult other judges. After 1993, Supreme Court decision it is now convention that senior most judge of Supreme Court becomes chief Justice of India.

4. Qualifications for appointment of Judges:

Act 123 provides following qualification

a.He must be a citizen of India

b. He has been Judge of a High court for at least five yeas continuously; or he has been on advocate of High court for at least ten years continuously or he is in the opinion of the President of India a distinguished jurist.

5. Tenure:

A person continues as judge of Supreme Court during his good behaviour or till he attains 65 years, whichever is earlier.

6. Removal:

Under Article 124 a Supreme Court Judge can be removed on the grounds of misbehavior or incapacity only. The procedure to remove a judge is called impeachment' Any house can initiate impeachment motion and if it is passed by 2/3 rd majority in each house the judge will be removed.

7. Immunities:

Action and decisions of the judges in their official capacity are immune from criticism. Under Article 121 conduct of Supreme Court judge cannot be questioned in parliament.

Appointment of Judges

The appointment of judges has never been free from political controversy. It is part of the political process. It makes a difference who serves in the Supreme Court and High Court— a difference in how the Constitution is interpreted. The political philosophy of the judges, their views about active and assertive judiciary or controlled and committed judiciary have an impact on the fate of the legislations enacted. Council of Ministers, Governors and Chief Ministers and Chief Justice of India — all influence the process of judicial appointment.

As far as the appointment of the Chief Justice of India (CJI) is concerned, over the years, a convention had developed whereby the senior-most judge of the Supreme Court was appointed as the Chief Justice of India. This convention was however broken twice. In 1973 A. N. Ray was appointed as CJI superseding three senior Judges. Again, Justice M.H. Beg was appointed superseding Justice H.R. Khanna (1975).

The other Judges of the Supreme Court and the High Court are appointed by the President after 'consulting' the CJI. This, in effect, meant that the final decisions in matters of appointment rested with the Council of Ministers. What then, was the status of the consultation with the Chief Justice?

This matter came up before the Supreme Court again and again between 1982 and 1998. Initially, the court felt that role of the Chief Justice was purely consultative. Then it took the view that the opinion of the Chief Justice must be followed by the President. Finally, the Supreme Court has come up with a novel procedure: it has suggested that the Chief Justice should recommend names of persons to be appointed in consultation with four senior-most judges of the Court. Thus, the Supreme Court has established the principle of collegiality in making recommendations for appointments. At the moment therefore, in matters of appointment the decision of the group of senior judges of the Supreme Court carries greater weight. Thus, in matters of appointment to the judiciary, the Supreme Court and the Council of Ministers play an important role.

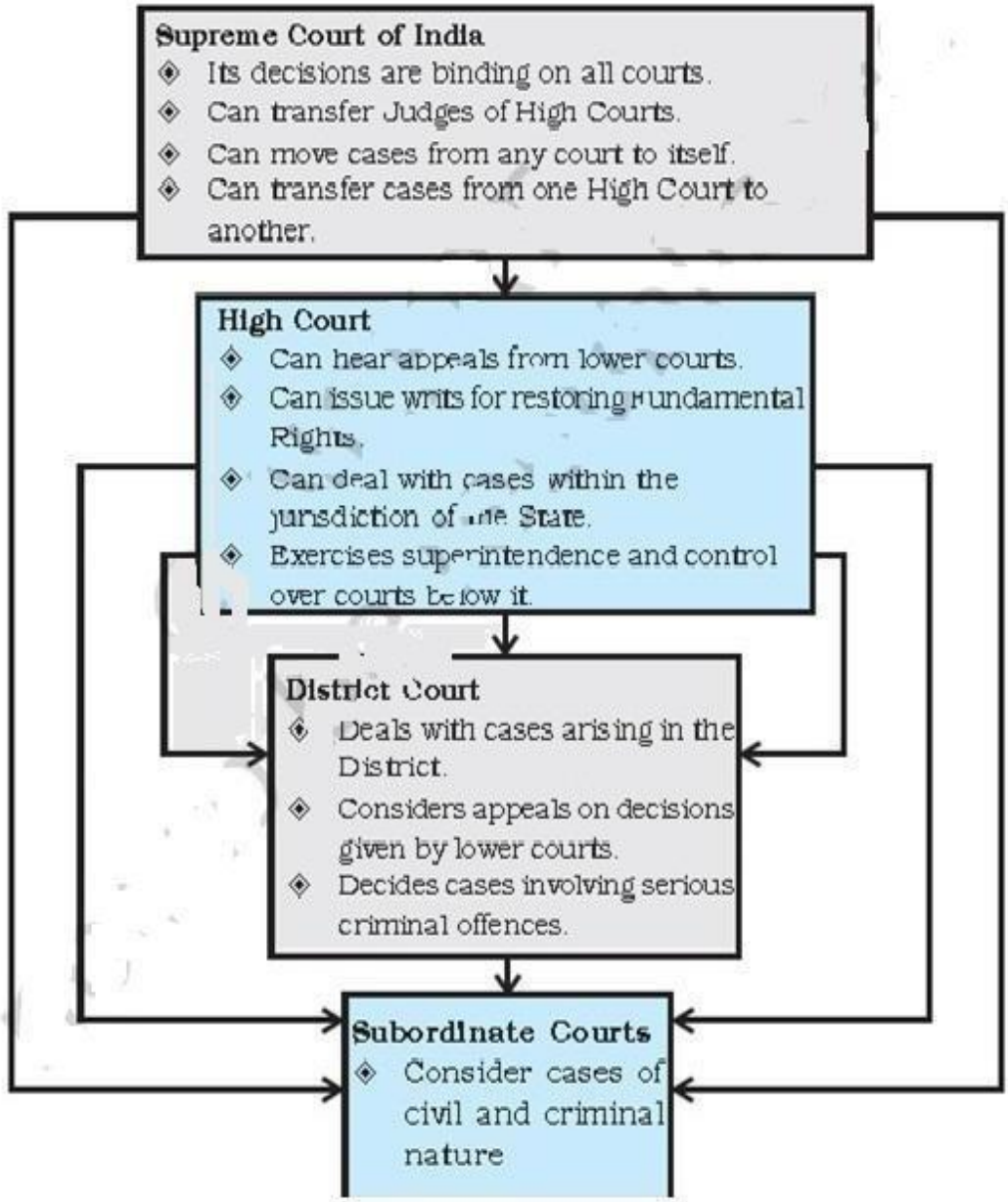
Removal of Judges

The removal of judges of the Supreme Court and the High Courts is also extremely difficult. A judge of the Supreme Court or High Court can be removed only on the ground of proven misbehaviour or incapacity. A motion containing the charges against the judge must b approved by special majority in both Houses of the Parliament. Do you remember what special majority means? We have studied this in the chapter on Elections. It is clear from this procedure that removal of a judge is a very difficult procedure and unless there is a general consensus among Members of the Parliament, a judge cannot be removed. It should also be noted that while in making appointments, the executive plays a crucial role; the legislature has the powers of removal.

This has ensured both balance of power and independence of the judiciary. So far, only one case of removal of a judge of the Supreme Court came up for consideration before the Parliament. In that case, though the motion got two-thirds majority, it did not have the support of the majority of the total strength of the House and therefore, the judge was not removed.

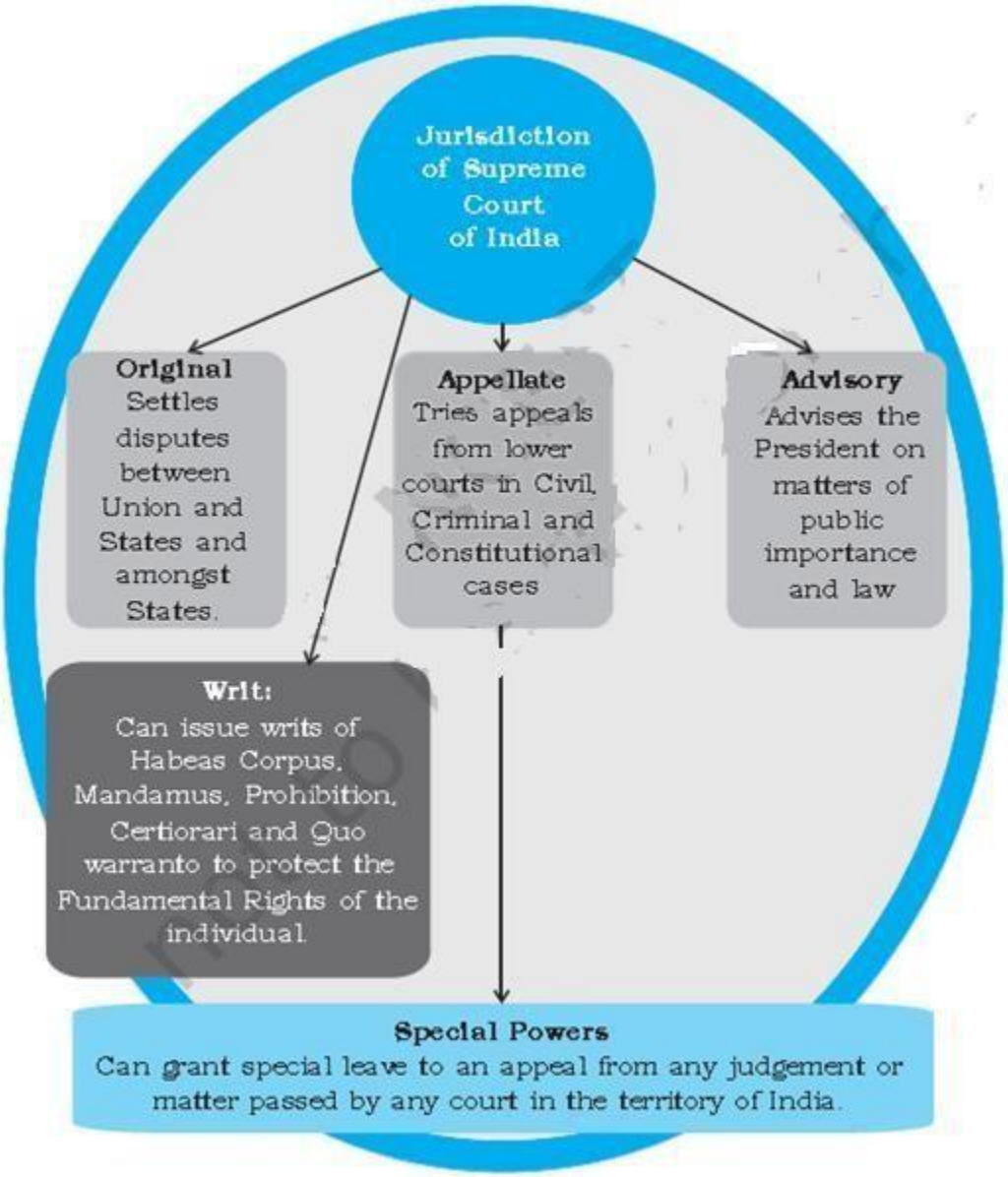
STRUCTURE OF THE JUDICIARY

The Constitution of India provides for a single integrated judicial system. This means that unlike some other federal countries of the world, India does not have separate State courts. The structure of the judiciary in India is pyramidal with the Supreme Court at the top, High Courts below them and district and subordinate courts at the lowest level (see the diagram below). The lower courts function under the direct superintendence of the higher courts.



Jurisdiction of Supreme Court

The Supreme Court of India is one of the very powerful courts anywhere in the world. However, it functions within the limitations imposed by the Constitution. The functions and responsibilities of the Supreme Court are defined by the Constitution. The Supreme Court has specific jurisdiction or scope of powers.



Original Jurisdiction

Original jurisdiction means cases that can be directly considered by the Supreme Court without going to the lower courts before that. Form the diagram above, you will notice that cases involving federal relations go directly to the Supreme Court. The Original Jurisdiction of the Supreme Court establishes it as an umpire in all disputes regarding federal matters. In any federal country, legal disputes are bound to arise between the Union and the States; and among the States

themselves. The power to resolve such cases is entrusted to the Supreme Court of India. It is called original jurisdiction because the Supreme Court alone has the power to deal with such cases. Neither the High Courts nor the lower courts can deal with such cases. In this capacity, the

Supreme Court not just settles disputes but also interprets the powers of Union and State government as laid down in the Constitution.

Writ Jurisdiction

As you have already studied in the chapter on fundamental rights, any individual, whose fundamental right has been violated, can directly move the Supreme Court for remedy. The Supreme Court can give special orders in the form of writs. The High Courts can also issue writs, but the persons whose rights are violated have the choice of either approaching the High Court or approaching the Supreme Court directly. Through such writs, the Court can give orders to the executive to act or not to act in a particular way.

Appellate Jurisdiction

The Supreme Court is the highest court of appeal. A person can appeal to the Supreme Court against the decisions of the High Court. However, High Court must certify that the case is fit for appeal, that is to say that it involves a serious matter of interpretation of law or Constitution. In addition, in criminal cases, if the lower court has sentenced a person to death then an appeal can be made to the High Court or Supreme Court. Of course, the Supreme Court holds the powers to decide whether to admit appeals even when appeal is not allowed by the High Court. Appellate jurisdiction means that the Supreme Court will reconsider the case and the legal issues involved in it. If the Court thinks that the law or the Constitution has a different meaning from what the lower courts understood, then the Supreme Court will change the ruling and along with that also give new interpretation of the provision involved. The High Courts too, have appellate jurisdiction over the decisions given by courts below them.

Advisory Jurisdiction

In addition to original and appellate jurisdiction, the Supreme Court of India possesses advisory jurisdiction also. This means that the President of India can refer any matter that is of public importance or that which involves interpretation of Constitution to Supreme Court for advice. However, the Supreme Court is not bound to give advice on such matters and the President is not bound to accept such an advice.

What then is the utility of the advisory powers of the Supreme Court? The utility is two-fold. In the first place, it allows the government to seek legal opinion on a matter of importance before taking action on it. This may prevent unnecessary litigations later. Secondly, in the light

of the advice of the Supreme Court, the government can make suitable changes in its action or legislations.

Article 137

…….. the Supreme Court shall have power to review any judgment pronounced or order made by it.

Article 144

…… ***All authorities, civil and judicial, in the territory of India shall act in aid of the Supreme Court.***

Read the articles quoted above. These articles help us to understand the unified nature of our judiciary and the powers of the Supreme Court. Decisions made by the Supreme Court are binding on all other courts within the territory of India. Orders passed by it are enforceable throughout the length and breadth of the country. The Supreme Court itself is not bound by its decision and can at any time review it. Besides, if there is a case of contempt of the Supreme Court, then the Supreme Court itself decides such a case.

JUDICIAL ACTIVISM

In the 1980s politics in India was undergoing major transformations like weakening of congress rule, increased regional politics, growing corruption and criminalisation, decline of parliament etc. The welfare state was failing to deliver promises to the poor masses. The parliament and the Executive were lacking the will and efficiency to implement public policies. In the scenario the Supreme Court assumed the role to itself of acting as guardian of the poor and deprived sections of the society,

The Supreme Court started looking into issues related to poverty, public service, corruption, rights of dalits, adivasis women and children, environmental protection, labour problems etc. This was done through the mechanism of public Interest Litigation. (PIL) it is a kind of litigation where court can take issues that affect the public at large. This is different from adversarial litigation where parties in conflict can only approach the court. In PIL court can take on issue if brought by any person of the society who is genuinely concerned about issues that affect the society. eg. M.C Mehta, environmental lawyer filed cases regarding pollution in Delhi and supreme court gave judgement on it.

In other case called Prakash Singh case the Supreme Court gave clear guidelines on how to reform the police system in India. The court in Unnikrishnan case said that education is

fundamental right of every child. The effect of this judgement was parliament amended the constitution to make primary education a fundamental right.

Judicial Activism started due to eminent judges like Justice Bhagwati and Justice Krishna Iyer who believed that it is the duty of Supreme Court to protect the rights of the weaker sections of the society through judicial means. Judicial activism played vital role in reinforcing constitutional values that were flouted by the executive and legislature.

It is sometimes said judicial activism is not healthy practice because Supreme Court should not decide public policy which is in the domain of parliament. Further court lacks the resources to implement the judgement. It can direct the legislature or executive but cannot force the latter.

JUDICIARY AND RIGHTS

We have already seen that the judiciary is entrusted with the task of protecting rights of individuals. The Constitution provides two ways in which the Supreme Court can remedy the violation of rights.

- First it can restore fundamental rights by issuing writs of Habeas Corpus; mandamus etc. (article 32). The High Courts also have the power to issue such writs (article 226).
- Secondly, the Supreme Court can declare the concerned law as unconstitutional and therefore non-operational (article 13).

Together these two provisions of the Constitution establish the Supreme Court as the protector of fundamental rights of the citizen on the one hand and interpreter of Constitution on the other. The second of the two ways mentioned above involves judicial review.

Perhaps the most important power of the Supreme Court is the power of judicial review. Judicial Review means the power of the Supreme Court (or High Courts) to examine the constitutionality of any law if the Court arrives at the conclusion that the law is inconsistent with the provisions of the Constitution, such a law is declared as unconstitutional and inapplicable. The term judicial review is nowhere mentioned in the Constitution. However, the fact that India has a written constitution and the Supreme Court can strike down a law that goes against fundamental rights, implicitly gives the Supreme Court the power of judicial review.

Besides, as we saw in the section on jurisdiction of the Supreme Court, in the case of federal relations too, the Supreme Court can use the review powers if a law is inconsistent with the distribution of powers laid down by the Constitution. Suppose, the central government makes a

law, which according to some States, concerns a subject from the State list. Then the States can go to the Supreme Court and if the court agrees with them, it would declare that the law is unconstitutional. In this sense, the review power of the Supreme Court includes power to review legislations on the ground that they violate fundamental rights or on the ground that they violate the federal distribution of powers. The review power extends to the laws passed by State legislatures also.

Together, the writ powers and the review power of the Court make judiciary very powerful. In particular, the review power means that the judiciary can interpret the Constitution and the laws passed by the legislature. Many people think that this feature enables the judiciary to protect the Constitution effectively and also to protect the rights of citizens. The practice of entertaining PILs has further added to the powers of the judiciary in protecting rights of citizens.

JUDICIARY AND PARLIAMENT

Apart from taking a very active stand on the matter of rights, the court has been active in seeking to prevent subversion of the Constitution through political practice. Thus, areas that were considered beyond the scope of judicial review such as powers of the President and Governor were brought under the purview of the courts.

There are many other instances in which the Supreme Court actively involved itself in the administration of justice by giving directions to executive agencies. Thus, it gave directions to CBI to initiate investigations against politicians and bureaucrats in the hawala case, the Narasimha Rao case, illegal allotment of petrol pumps case etc. You may have heard about some of these cases. Many of these instances are the products of judicial activism.

The Indian Constitution is based on a delicate principle of limited separation of powers and checks and balances. This means that each organ of the government has a clear area of functioning. Thus, the Parliament is supreme in making laws and amending the Constitution, the executive is supreme in implementing them while the judiciary is supreme in settling disputes and deciding whether the laws that have been made are in accordance with the provisions of the Constitution. Despite such clear cut division of power the conflict between the Parliament and judiciary, and executive and the judiciary has remained a recurrent theme in Indian politics.

We have already mentioned the differences that emerged between the Parliament and the judiciary over right to property and the Parliament's power to amend the Constitution. Let us recapitulate that briefly:

Immediately after the implementation of the Constitution began, a controversy arose over the Parliament's power to restrict right to property. The Parliament wanted to put some restrictions on the right to hold property so that land reforms could be implemented. The Court held that the Parliament cannot thus restrict fundamental rights. The Parliament then tried to amend the Constitution. But the Court said that even through an amendment, a fundamental right cannot be abridged.

The following issues were at the centre of the controversy between the Parliament and the judiciary.

- What is the scope of right to private property?
- What is the scope of the Parliament's power to curtail, abridge or fundamental rights?
- What is the scope of the Parliament's power to amend the constitution?
- Can the Parliament make laws that abridge fundamental rights while enforcing directive principles?

During the period 1967 and 1973, this controversy became very serious. Apart from land reform laws, laws enforcing preventive detention, laws governing reservations in jobs, regulations acquiring private property for public purposes, and laws deciding the compensation for such acquisition of private property were some instances of the conflict between the legislature and the judiciary.

In 1973, the Supreme Court gave a decision that has become very important in regulating the relations between the Parliament and the Judiciary since then. This case is famous as the Kesavananda Bharati case. In this case, the Court ruled that there is a basic structure of the Constitution and nobody—not even the Parliament (through amendment)—can violate the basic structure. The Court did two more things. First, it said that right to property (the disputed issue) was not part of basic structure and therefore could be suitably abridged. Secondly, the Court reserved to itself the right to decide whether various matters are part of the basic structure of the Constitution. This case is perhaps the best example of how judiciary uses its power to interpret the Constitution.

This ruling has changed the nature of conflicts between the legislature and the judiciary. As we studied earlier, the right to property was taken away from the list of fundamental rights in 1979 and this also helped in changing the nature of the relationship between these two organs of government.

Some issues still remain a bone of contention between the two — can the judiciary intervene in and regulate the functioning of the legislatures? In the parliamentary system, the legislature has the power to govern itself and regulate the behaviour of its members. Thus, the legislature can punish a person who the legislature holds guilty of breaching privileges of the legislature. Can a person who is held guilty for breach of parliamentary privileges seek protection of the courts? Can a member of the legislature against whom the legislature has taken disciplinary action get protection from the court? These issues are unresolved and are matters of potential conflict between the two. Similarly, the Constitution provides that the conduct of judges cannot be discussed in the Parliament. There have been several instances where the Parliament and State legislatures have cast aspersions on the functioning of the judiciary. Similarly, the judiciary too has criticised the legislatures and issued instructions to the legislatures about the conduct of legislative business. The legislatures see this as violating the principle of parliamentary sovereignty.

These issues indicate how delicate the balance between any two organs of the government is and how important it is for each organ of the government in a democracy to respect the authority of others.

POWERS AND FUNCTIONS OF SUPREME COURT

1. Original Jurisdiction:

Article 131 deals with original jurisdiction. The functions are purely federal in character that may include disputes between Union and the states, Government of India and government of states or between two or more states. The original jurisdiction is exclusive that means such disputes can come only to Supreme Court and not any other court. If a suit is brought against government by private party it cannot be tolerated.

2. Writ Jurisdiction:

If there is violation of fundamental rights a person under Article 32 can ask the Supreme Court to issue writs. But this applies only if fundamental rights of a person are infringed.

3. Appellate Jurisdiction:

Supreme Court is a court of appeal. When lower or High court gives a judgments the person can appeal to the supreme court against the judgment of the lower court. Appeal to the Supreme Court can be made in three type of cases.

a. Cases involving interpretation of the constitution

b. Civil cases, irrespective of any constitutional question

c. Criminal cases, irrespective of any constitutional question

4. Appeal by special Leave:

There may be some instance where Supreme Court may interfere with the judgment of High Court or tribunals where the question of justice is involved. Such residuary power is given to Supreme Court under Article 136.

5. Advisory Jurisdiction:

In some circumstance the President may refer the matter to Supreme Court to seek opinion. The president may consider that the matter involves important question of law or public interest, hence it will be appropriate to seek opinion from Supreme Court.

6. Court of Record:

All the proceedings of the Supreme Court are recorded and assume the form of case law. Such decisions are binding on all courts in India.

DEVELOPMENT OF JUDICIAL

The first time judicial Review was invoked was during Shankari Prasad vs Union of India in 1951. Here the petitioner challenged the first Amendment to the constitution on the grounds it violates fundamental rights. The same objection was raised in Sajjan Singh vs state of Rajasthan. In both cases supreme court stated Parliament has power to amend Fundamental Rights. In 1967, in the case of Golaknatha, Supreme Court in its verdict said parliament has no power to take away fundamental rights. Thus it questioned parliament's power to amend the constitution.

The parliament later passed the 24th &25th amendment to restore it powerback. Finally in the Keshavanand Bharti case Supreme Court struck balance between power of parliament to make laws and its power to judicial review. Supreme Court for the first time invoked the doctrine of 'Basic structure' whereby it said parliament can amend constitution but cannot harm basic principles of the constitution. Unfortunately Supreme Court didn't lay down as what constitute 'Basic structure' It evolved over period of time. Later Indira Gandhi made some drastic changes in the constitution through 42nd amendment during emergency. The 42nd amendment was reviewed in the Minerva Mills case where Supreme Court struck down major portion of 42nd amendment and restored the balance between parliament and Supreme Court to the 1976 status quo. In the 1980 and 1990's Supreme Court has time and again used judicial review as a tool to prevent the legislature and executive from transgressing into its area. In 2005 the Supreme Court questioned the validity of Ninth schedule by stating laws incorporated into 9th scheduled can be subjected to judicial review if it infringes fundamental rights of individuals.

HIGH COURTS
THE HIGH COURTS IN THE STATES

214. High Courts for States.

There shall be a High Court for each State.

215. High Courts to be courts of record.

Every High Court shall be a court of record and shall have all the powers of such a court including the power to punish for contempt of itself.

216. Constitution of High Courts.

Every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint.

217. Appointment and conditions of the office of a Judge of a High Court.

(1) Every Judge of a High Court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and shall hold office, in the case of an additional or acting Judge, as provided in article 224, and in any other case, until he attains the age of sixty-two years:

Provided that

(a) a Judge may, by writing under his hand addressed to the President, resign his office;

(b) a Judge may be removed from his office by the President in the manner provided in clause (4) of article 124 for the removal of a Judge of the Supreme Court;

(c) the office of a Judge shall be vacated by his being appointed by the President to be a Judge of the Supreme Court or by his being transferred by the President to any other High Court within the territory of India.

Qualification of Judges

(2) A person shall not be qualified for appointment as a Judge of a High Court unless he is a citizen of India and—

(a) has for at least ten years held a judicial office in the territory of India; or

(b) has for at least ten years been an advocate of a High Court or of two or more such Courts in succession.

Explanation. For the purposes of this clause

(a) in computing the period during which a person has held judicial office in the territory of India, there shall be included any period, after he has held any judicial office, during which the person has been an advocate of a High Court or has held the office of a member of a tribunal or any post, under the Union or a State, requiring special knowledge of law;

(a) in computing the period during which a person has been an advocate of a High Court, there shall be included any period during which the person has held judicial office or the office of a member of a tribunal or any post, under the Union or a State, requiring special knowledge of law after he became an advocate;

(b) in computing the period during which a person has held judicial office in the territory of India or been an advocate of a High Court, there shall be included any period before the commencement of this Constitution during which he has held judicial office in any area which was comprised before the fifteenth day of August, 1947, within India as defined by the Government of India Act, 1935, or has been an advocate of any High Court in any such area, as the case may be.

(3) If any question arises as to the age of a Judge of a High Court, the question shall be decided by the President after consultation with the Chief Justice of India and the decision of the President shall be final.

Power of High Courts to issue certain writs

Notwithstanding anything in article 32, every High Court shall have power, throughout the territories in relation to which it exercises jurisdiction, to issue to any person or authority, including in appropriate cases, any Government, within those territories directions, orders or writs, including writs in the nature of *habeas corpus, mandamus,* prohibition, *quo warranto* and *certiorari,* or any of them, for the enforcement of any of the rights conferred by Part III and for any other purpose. (2) The power conferred by clause (1) to issue directions, orders or writs to any Government, authority or person may also be exercised by any High Court exercising jurisdiction in relation to the territories within which the cause of action, wholly or in part, arises for the exercise of such power, notwithstanding that the seat of such Government or authority or

the residence of such person is not within those territories. (3) Where any party against whom an interim order, whether by way of injunction or stay or in any other manner, is made on, or in any proceedings relating to, a petition under clause (1), without

(a) furnishing to such party copies of such petition and all documents in support of the plea for such interim order; and

(b) giving such party an opportunity of being heard, makes an application to the High Court for the vacation of such order and furnishes a copy of such application to the party in whose favour such order has been made or the counsel of such party, the High Court shall dispose of the application within a period of two weeks from the date on which it is received or from the date on which the copy of such application is so furnished, whichever is later, or where the High Court

is closed on the last day of that period, before the expiry of the next day afterwards on which the High Court is open; and if the application is not so disposed of, the interim order shall, on the expiry of that period, or, as the case may be, the expiry of the said next day, stand vacated.

(4) The power conferred on a High Court by this article shall not be in derogation of the power conferred on the Supreme Court by clause (2) of article 32.

Power of superintendence over all courts by the High Court

(1) Every High Court shall have superintendence over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction.

(2) Without prejudice to the generality of the foregoing provision, the High Court may

(a) call for returns from such courts;

(b) make and issue general rules and prescribe forms for regulating the practice and proceedings of such courts; and

(c) prescribe forms in which books, entries and accounts shall be kept by the officers of any such courts.

(3) The High Court may also settle tables of fees to be allowed to the sheriff and all clerks and officers of such courts and to attorneys, advocates and pleaders practising therein:

Provided that any rules made, forms prescribed or tables settled under clause (2) or clause (3) shall not be inconsistent with the provision of any law for the time being in force, and shall require the previous approval of the Governor.

(4) Nothing in this article shall be deemed to confer on a High Court powers of superintendence over any court or tribunal constituted by or under any law relating to the Armed Forces. **Transfer of certain cases to High Court.**—If the High Court is satisfied that a case pending in a court subordinate to it involves a substantial question of law as to the interpretation of this Constitution the determination of which is necessary for the disposal of the case, it shall withdraw the case and may—

(a) either dispose of the case itself, or (*b*) determine the said question of law and return the case to the court from which the case has been so withdrawn together with a copy of its judgment on such question, and the said court shall on receipt thereof proceed to dispose of the case in conformity with such judgment.

CONTROL OVER SUBORDINATE COURTS

233. Appointment of district judges.—(1) Appointments of persons to be, and the posting and promotion of, district judges in any State shall be made by the Governor of the State in consultation with the High Court exercising jurisdiction in relation to such State.

(2) A person not already in the service of the Union or of the State shall only be eligible to be appointed a district judge if he has been for not less than seven years an advocate or a pleader and is recommended by the High Court for appointment.

233A. Validation of appointments of, and judgments, etc., delivered by, certain district judges.—Notwithstanding any judgment, decree or order of any court,—

(a) (*i*) no appointment of any person already in the judicial service of a State or of any person who has been for not less than seven years an advocate or a pleader, to be a district judge in that State, and (*ii*) no posting, promotion or transfer of any such person as a district judge, made at any time before the commencement of the Constitution (Twentieth Amendment) Act, 1966, otherwise than in accordance with the provisions of article 233 or article 235 shall be deemed to be illegal or void or ever to have become illegal or void by reason only of the fact that such appointment, posting, promotion or transfer was not made in accordance with the said provisions;

(b) no jurisdiction exercised, no judgment, decree, sentence or order passed or made, and no other act or proceeding done or taken, before the commencement of the Constitution (Twentieth Amendment) Act, 1966 by, or before, any person appointed, posted, promoted or transferred as a district judge in any State otherwise than in accordance with the provisions of article 233 or article 235 shall be deemed to be illegal or invalid or ever to have become illegal or invalid by reason only of the fact that such appointment, posting, promotion or transfer was not made in accordance with the said provisions.

234. Recruitment of persons other than district judges to the judicial service.—Appointments of persons other than district judges to the judicial service of a State shall be made by the Governor of the State in accordance with rules made by him in that behalf after consultation with the State Public Service Commission and with the High Court exercising jurisdiction in relation to such State.

235. Control over subordinate courts.—The control over district courts and courts subordinate thereto including the posting and promotion of, and the grant of leave to, persons belonging to the judicial service of a State and holding any post inferior to the post of district judge shall be vested in the High Court, but nothing in this article shall be construed as taking away from any such person any right of appeal which he may have under the law regulating the conditions of his service or as authorising the High Court to deal with him otherwise than in accordance with the conditions of his service prescribed under such law.

236. Interpretation.— In this Chapter—

(a) the expression "district judge" includes judge of a city civil court, additional district judge,

joint district judge, assistant district judge, chief judge of a small cause court, chief presidency magistrate, additional chief presidency magistrate, sessions judge, additional sessions judge and assistant sessions Judge;

(b) the expression "judicial service" means a service consisting exclusively of persons intended to fill the post of district judge and other civil judicial posts inferior to the post of district judge.

237. Application of the provisions of this Chapter to certain class or classes of magistrates.—The Governor may by public notification direct that the foregoing provisions of this Chapter and any rules made there under shall with effect from such date as may be fixed by him in that behalf apply in relation to any class or classes of magistrates in the State as they apply in relation to persons appointed to the judicial service of the State subject to such exceptions and modifications as may be specified in the notification.

UNIT IV
THE JUDICATURE

PART-A

1. Why do we need an independent judiciary?

   The independent Judiciary allows the court to play a central role in securing that there is no misuse of powers of the Legislature and executive.

2. What is meant by an independent judiciary?

   The other branches of government which are the legislature and the executive, cannot interfere in the work of such a judiciary. In an independent judiciary, the courts are not under the government and do not act on its behalf.

3. How is this independence ensured?

   Judicial independence is generally guaranteed by the Constitution of India, but it can also be guaranteed by rules, conventions, and other relevant norms and practices. However, the legislative or fundamental laws of the judiciary are just the starting point in the process of ensuring judicial independence.

4. State Interpretation.

   The general rule of interpretation of statute is that the Court while interpreting the statute or any part of it would use literal rule of interpretation. Literal rule means adherence to the words mentioned in the act. Under this approach the court focuses on the literal meaning of the constitutional provisions.

5. How many High Courts available in India?

   25 high courts are available in India.

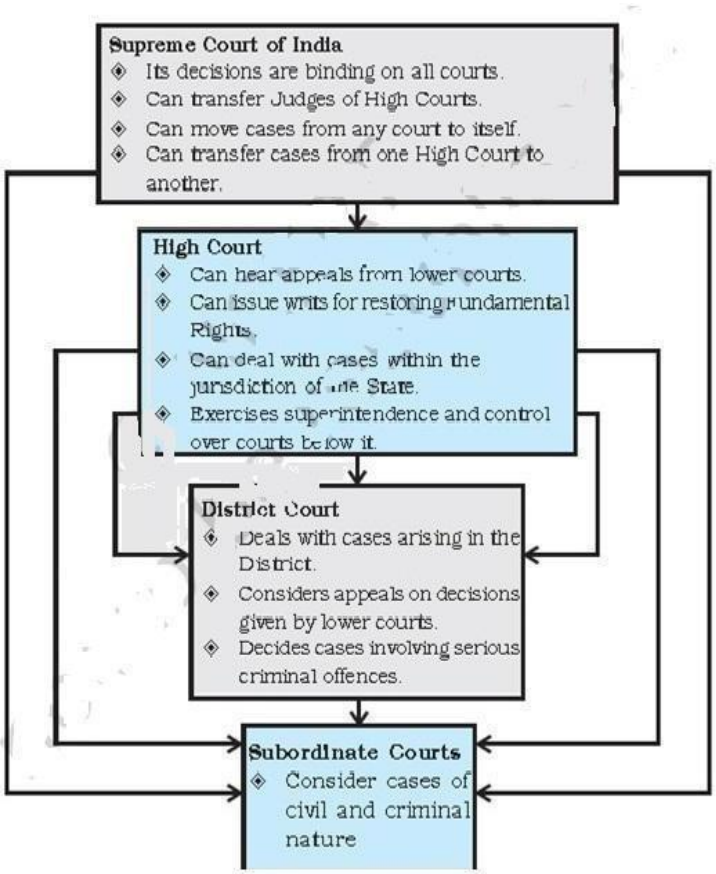
6. Write about Original Jurisdiction.

   Article 131 deals with original jurisdiction. The functions are purely federal in character that may include disputes between Union and the states, Government of India and government of states or between two or more states. The original jurisdiction is exclusive that means such disputes can come only to Supreme Court and not any other court. If a suit is brought against government by private party it cannot be tolerated.

7. Write about Writ Jurisdiction

If there is violation of fundamental rights a person under Article 32 can ask the Supreme Court to issue writs. But this applies only if fundamental rights of a person are infringed.

8. Draw the structure of the Judiciary.



9. Write about Appellate Jurisdiction

Supreme Court is a court of appeal. When lower or High court gives a judgments the person can appeal to the supreme court against the judgment of the lower court. Appeal to the Supreme Court can be made in three type of cases.

a. Cases involving interpretation of the constitution

b. Civil cases, irrespective of any constitutional question

c. Criminal cases, irrespective of any constitutional question

10. State Advisory Jurisdiction

Advisory Jurisdiction is when a lower court or any constitutional body seeks the advice of the higher Court in a matter of law. The practice of seeking advisory opinion of the judiciary has its beginning in England.

11. Write short notes on Judicial Activism.

Judicial activism is the exercise of the power of judicial review to set aside government acts. Generally, the phrase is used to identify undesirable exercises of that power, but there is little agreement on which instances are undesirable.

12. What is the power of Supreme Court?

The Supreme Court, at the apex of the Indian Judiciary, is the highest authority to interpret and uphold the Constitution of India, to protect the rights and liberties of the citizens, and to abide by the values of law. Therefore, the Supreme Court is the guardian of our Constitution.

13. What is the power of high court?

Regarding Fundamental Rights: They are empowered to issue writs in order to enforce fundamental rights. With respect to other cases: All High Courts have original jurisdiction in cases that are related to will, divorce, contempt of court and admiralty. Election petitions can be heard by the High Courts.

14. What is meant by Subordinate court?

Subordinate courts, on the criminal side (in ascending order of hierarchy) are, First Class Judicial Magistrate Court, Chief Judicial Magistrate Court. Certain matters on criminal side or civil side cannot be tried by a court lesser than a district court.

PART-B

1. Briefly explain the following
   (i) Judiciary and rights
   (ii) Judiciary and parliament
2. Describe the functions and Power of Supreme Court.
3. Discuss the procedure for filing a case in consumer court
4. Assume that you are a Panchayat Leader ,in your Point of view what are the steps will you take forward for developing your Panchayat
5. Discuss about the High court's functioning in our state**.**
6. Discuss about Judiciary and its Rights.
7. Discuss about Judiciary and parliament.

UNIT V

THE FEDERAL SYSTEM

Even before Independence, most leaders of our national movement were aware that to govern a large country like ours, it would be necessary to divide the powers between provinces and the central government. There was also awareness that Indian society had regional diversity and linguistic diversity. This diversity needed recognition. People of different regions and languages had to share power and in each region, people of that region should govern themselves. This was only logical if we wanted a democratic government.

The only question was what should be the extent of powers to be enjoyed by the regional governments. In view of the agitation of the Muslim League for greater representation to the Muslims, a compromise formula to give very large powers to the regions was discussed during the negotiations before Partition. Once the decision to partition India was taken, the Constituent Assembly decided to frame a government that would be based on the principles of unity and cooperation between the centre and the States and separate powers to the States. The most important feature of the federal system adopted by the Indian Constitution is the principle that relations between the States and the centre would be based on cooperation. Thus, while recognising diversity, the Constitution emphasised unity.

Do you know for example, that the Constitution of India does not even mention the word federation? This is how the Constitution describes India

Article 1: (1) India, that is Bharat, shall be a Union of States.

(2) The States and the territories thereof shall be as specified in the First Schedule.

DISTRIBUTION OF FINANICAL POWER
DIVISION OF POWERS

There are two sets of government created by the Indian Constitution: one for the entire nation called the union government (central government) and one for each unit or State called the State government. Both of these have a constitutional status and clearly identified area of activity. If there is any dispute about which powers come under the control of the union and which under the States, this can be resolved by the Judiciary on the basis of the constitutional provisions. The Constitution clearly demarcates subjects, which are under the exclusive domain of the Union and those under the States. (Study the chart given on the next page carefully. It shows how powers are distributed between the centre and the States.) One of the important aspects of this division of

powers is that economic and financial powers are centralised in the hands of the central government by the Constitution. The States have immense responsibilities but very meager revenue sources.

The division of power as a concept was theoretically enumerated by John Locke. It was modified by Montesquieu and got reflected in the Constitution of the United States of America. In essence, federalism is a division of powers between the National governments and State governments. In federalism, there should be a clear division of powers so that the units (states) and the Centre are required to enact and legislate within their sphere of activity,and none violates its limits and tries to encroach upon the functions of others. Indeed, federalism is an agreement

between two or more units which are independent and autonomous. In a federal system, different units of governance enter into an agreement to support each other on common interests and respect each other's autonomy in deciding about their interests. This agreement is evident in the Constitution of India. The Seventh Schedule (Part XI) contains three Legislative Lists which mentions subjects for legislation by the Union government, state governments and jointly by the Union government and state governments: List I- Union List, List II -State List and List III - Concurrent List.

Mahatma Gandhi talked about decentralisation of power by talking about a *Ram- Rajya*in which there will be layers of powers starting from the village-panchayat and then proceeding up-to-the national level. So far as the administrative history of British India is concerned, the British Indian Constitution Act of 1935 enumerated the legislative powers in three lists – Federal, Provincial and the Concurrent and the residue powers were given to the Governor-General to be assigned by him either to the Central government or the provinces. This particular arrangement was necessities by the then prevailing conditions in the country, the Hindus favouring a strong Centre while the Muslims are favouring strong provinces.

The distribution of powers in each federation reflects in the nature and character of the policy agreed upon by those who were responsible for drawing up the Constitution. Whatever may be the variations in the details of the distribution of legislative powers, one fact is common to all federations; is there is a distribution of legislative powers,and this distribution determines the distribution of executive authority.

DIVISION OF POWER IN THE CONSTITUTION OF INDIA

The basic provisions regarding the distribution of powers between the Central and Provincial (state) governments in the Indian Constitution are present in Part XI (Article 246) of the Constitution. This part is divided into two chapters – legislative relations and administrative relations. Indian Constitution has followed a system in which there are two lists of legislative powers, one for the Centre and the other for the State. The residue is left for the Centre. This system is similar to the one in the Constitution of Canada. Following the Constitution of Australia, anadditional list has been included in the Constitution of India, namelythe Concurrent List. The Constituent Assembly of India followed the system of division of power as was envisaged in the Government of India Act of 1935 regarding the provisions about divisions of power in India. The items that can be legislated by the Union government, the state governments

and jointly both by the union government and state government are mentioned in the lists known as List I – Union List, List II- State List and List III- Concurrent List.

The Union List

The Union List consists of ninety-seven items. It is the longest of the three lists. It includes items such as defence, armed forces, arms and ammunition, atomic energy, foreign affairs, war and peace, citizenship, extradition, railways, shipping and navigation, airways, posts and telegraphs, telephones, wireless and broadcasting, currency, foreign trade, inter-state trade and commerce, banking, insurance, control of industries, regulation and development of mines, mineral and oil resources, elections, audit of Government Accounts, constitution and organization of Supreme Court, High Courts and the Union Public Service Commission, Income- tax, Customs duties, export duties, Corporation tax, taxes on capital value of assets, estate duties, terminal taxes, etc. Parliament has exclusive powers of legislation about items mentioned in this list.

The State List

The State List consists of sixty-six items. Some of the most important of these items are as follows – public order, police, administration of justice, prisons, local government, public health and sanitation, education, agriculture, animal husbandry, water supplies and irrigation, land rights, forests, fisheries, money lending, State Public Service Commission, land revenue, taxes on agricultural income, taxes on lands and buildings, estate duty, taxes on electricity, taxes on vehicles, taxes on luxuries, etc. The selection of these items is based on local interest,and it envisages the possibility of diversity of treatment with respect to different items in different States of the Union.

The Concurrent List

The Concurrent List consists of forty-seven items. These are items with respect to which uniformity of legislation throughout the Union is desirable but not essential. As such they are placed under the jurisdiction of both the Union and the States. The list includes items such as marriage and divorce, transfer of property other than agricultural land, contracts, bankruptcy and insolvency, trustees and trusts, civil procedure, contempt of court, adulteration of foodstuffs, drugs and poisons, economic and social planning, trade unions, security, labour welfare, electricity, newspapers, books and printing presses, stamp duties, etc.

The Parliament of India and state legislatures have concurrent powers of legislation over the items included in this list. Once Parliament enacts a law on an item in this list, the parliamentary law shall prevail over any state law on an item. There is, however, one exception to this general rule. According to this a later law of the state legislature on any item in the Concurrent List shall prevail over an earlier law of Parliament on the same subject if the state law was reserved for the consideration of the President and received his assent. This enables a State to pass a more advanced piece of legislation than an existing parliamentary law. This also provides for any special conditions and circumstances that may prevail in any State.

RESIDUARY POWERS OF LEGISLATION

Residuary powers are the powers to legislate on the issues which are not mentioned in the three lists mentioned above. In India, the residuary powers are vested in the Union. Although the states in India have the exclusive power of legislation over every item in the State List, there are certain exceptions to this general rule. In these exceptional cases, the centre has residuary powers to legislate. These exceptions are:

a) Article 249 of Indian Constitution provides that if the Rajya Sabha has declared by a resolution supported by not less than two-thirds of the members present and voting that it was necessary or expedient in the national interest **Division of Powers** that Parliament should make laws with respect to any matter enumerated in the Sate List specified in the resolution, it shall become lawful for Parliament to make laws for the whole or any part of the territory of India with respect to that matter during the period the resolution remained in force. The Rajya Sabha, however, could extend the period of such a resolution for a further period of one year from the date on which it would otherwise have been operated.

b) Article 250 empowers the Parliament to make laws on any item included in the State list for the whole or any part of India while a proclamation of Emergency is in operation. The maximum period for which such a law can be enforced is the period for which emergency lasts and six months beyond that period.

c) By Article 252, Parliament also becomes entitled for legislating two or more states by their consent. If two or more States request the Central government to legislate on a particular subject mentioned in the State List in so far as their State is concerned, the Parliament shall legislate on these subjects as well. If any such law is to be amended or repealed, it can be done only by Parliament alone,but the initiative for it rests with the State.

d) Under Article 253 Parliament has the power to legislate any law for the whole or any part of India for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conferences, association or any body. This provision entitles Parliament to legislate even in respect of those subjects that were included in the State List.

e) Article 356 stipulates that if the President is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provision of the Constitution, he might declare that the power of the Legislature of that State would be exercisable by or under the authority of the Parliament. The effect of Article 356 would be that the legislature of the State in question would stand dissolved or suspended and the lawmaking power would rest in the Parliament during the period of proclamation of emergency was in force.

f) Not only does the Parliament enjoy predominance over law-making in the States,the Union executive also exercises some control on this activity there. Clause 3 of Article 31 dealing with the right to property provides that if the legislature of a State adopts a Bill providing for the compulsory acquisition of movable or immovable property for public purposes, such a Bill will not be effective unless it has been reserved for the consideration of the President and has received his assent. Article 200 states that the Governor shall not assent to but shall reserve for the consideration of the President any Bill which in the opinion of the Governor would, if it becomes law so derogate from the powers of the High Court as to endanger the position which that Court has by the Constitution designed to fill. Under Article 200 the Governor can reserve a Bill of the State Legislature for the consideration or assent of the President. Whether he can do so on his discretion or on the directive of the Union authorities has not been stated in the Constitution.The general implication, however,is that the Governor will reserve the Bill for the consideration of the President only if some important political issues are involved.

Sarkaria Commission

In June 1983, the central government appointed Sarkarian commission under the chairmanship of Justice R.S. Sarkaria to review the scope and working of constitutional provisions on centre-state relations. After discussion with various state governments on several issues in Union-state relations, the commission submitted its report on October 27, 1987. The Sarkarian commission

favoured a strong Centre as the only safeguard to national integrity. It recommended that residuary power of legislation regarding taxation matters should remain with Parliament while the residuary powers for issues other than taxation should be placed in the Concurrent List. But it did not support centralization of power in the Union government. The Commission also recommended establishment of a permanent Inter-State Council under Article 263 of the Constitution as a forum to discuss many of the problems of common Union-State interests. It sought to promote a balanced approach towards division of powers in India.It suggested that whenever the Union proposes to undertake legislation with respect to a matter in the Concurrent List, there should be prior consultation not only with the State governments independently but also collectively with the Inter-Governmental Council should be established under Article 268.

In the light of Sarkaria commission report, the National Front Government established the Inter- State Council through a presidential notification on May 25,1990. The Council was to consist of the Prime Minister, Chief Ministers of all States, Chief Ministers or Administrators of Union Territories and six ministers of cabinet rank of the Union Government. The Council is headed by the Prime Minister and in his absence by the cabinet minister nominated by him. The council prepares guidelines for identifying issues to be brought before it and is expected to meet at least thrice every year. It also recommended that the persons of high integrity should be appointed as Governors of states and Article 356 should be used sparingly and last resort when other alternatives were not available. The usage of Article 356 under which President rule is imposed in states should be subject to judicial review. It also recommended a review of operational feasibility of the scope for levying taxes and duties, a constitutional amendment to make corporation tax sharable between the Union and the States, and amendment to the Inter- State River Water Dispute for making it necessary for Union government to constitute a tribunal. The tribunal was to be constituted within one year of receipt of an application from a State and to make the award of the tribunal effective within five years.

In April 2007, the UPA (United Progressive Alliance) government appointed Punchhi Commission under the chairmanship of Justice MM Punchi. Its purpose to review the roles and responsibilities of various levels of governments – centrestate relations, Panchayati Raj Institutions and local bodies, and their interrelations. The Commission submitted its report in 2010. It made 312 recommendations. These also included recommendations to deal with internal security and communal violence.

ADMINISTRATIVE AND FINANCIAL DISTRIBUTION OF POWERS

The Constitution emphasises that there should be administrative cooperation between the Union and the states. According to Article 261, full faith and credit shall be given to public acts, records and judicial proceedings of the Union and States in all part of Indian territory. The manner in which these acts and records will be provided, and their effect determined will be provided by Parliamentary enactments. According to Article 262, which deals with waters of inter-state rivers and river valleys, Parliament may by law provide for adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of any inter- state river or river-valley.

The Constitution also has provisions about financial relations between the Unions and State governments for raising enough funds. Article 292 which authorizes the Union government to borrow upon the security of the Consolidated Funds of India within the limits which may fixed by Parliamentary law from time to time. For this, the Constitution does not fix any territorial limit.Article 293 fixes territorial limits on the borrowing of states. They cannot borrow from outside India. The states can borrow within the territory of India upon security of the Consolidated Funds of the State. The limits of borrowing may be fixed by the legislature of such state by law. Article 285 exempts the property of the Union from all taxes imposed by a State or by any authority within a State unless Parliament by law provided otherwise. During the proclamation of financial emergency, the President can suspend the provisions relating to the division of taxes between the Union and the State and grants-in-aid to the States. Based on the recommendations of the Tenth Finance Commission, an alternative scheme for sharing taxes between the Union and States has been enacted by the 88th Constitutional Amendment Act in 2000. According to this amendment 29 percent out of gross proceeds of Union taxes and duties is to be assigned to the States in lieu of their existing share in the income-tax, excise duties, special excise duties and grants in lieu of tax on railway passenger fares.

LET US SUM UP

The constitutional provisions in Indian can be traced to division of powers given in the Government of India Act, 1935.The division of power provision in the Constitution of India is elaborately outlined in three Lists-the Union, State and Concurrent. The residuary powers or the powers denote the powers to legislate on issues which are not mentioned in any of these lists. They vest with the Union government. The centre-state relations were reviewed by Sarkaria

Commission. Among its recommendations included those on residuary powers. Regarding them, it suggested that residuary power to legislate on taxation should remain with the centre, and those relating to regulation on issues other than taxation should be in the Concurrent List. It also recommended establishment of an Inter- State Council. The Constitution also has provisions for managing Union and state relations in administrative and financial matters.

NEEDS

Need for Distribution of Financial Powers

1. To avoid conflicts

Clear division prevents Centre and States from fighting over who can collect which taxes.

2. To ensure efficient governance

Both levels of government need money to perform their duties.

3. To maintain national unity

The Centre needs strong financial power to run the country, defence, national development etc.

4. To support states

States also need financial independence to manage local needs (health, agriculture, police, etc.).

5. To reduce economic imbalance

Distribution helps in providing funds to weaker states through grants and sharing of taxes.

6. To promote development

Proper financial sharing ensures balanced development across all regions.

Principles

Principles of Distribution of Financial Powers

✓ Principle 1: Division of Taxes (Clear List)

Taxes are divided into:

- Union List taxes – Centre collects (like income tax, customs, GST components, etc.)
- State List taxes – States collect (like stamp duty, excise on alcohol, land revenue, etc.)
- Concurrent taxes – Very few; mostly GST Council decides.

✓ Principle 2: Separation of Functions

Each level collects tax for subjects it handles.

Example:

- Defence – Centre → collects customs
- Police – State → collects state excise

✓ Principle 3: No overlapping

Same tax cannot be collected by both Centre and State on the same subject.

✓ Principle 4: Sharing of Revenue

Some taxes collected by the Centre are shared with states (like Income Tax, GST).

✓ Principle 5: Grants-in-Aid

The Centre can give money to states (Article 275) to help them meet needs or reduce inequality.

✓ Principle 6: Finance Commission

A Finance Commission (Article 280) recommends:

- How to share taxes
- How much assistance states need
- How to maintain financial stability

✓ Principle 7: Flexibility with Accountability

Centre can provide funds for national priorities, but states also maintain autonomy for local needs.

UNDERLYING DISTRIBUTION OF TAX REVENUES

Distribution of Revenues between the Union and the States

Duties levied by the Union but collected and appropriated by the States.

268. (1) Such stamp duties and such duties of excise on medicinal and toilet preparations as are mentioned in the Union List shall be levied by the Government of India but shall be collected.

(a) in the case where such duties are leviable within any 2[Union territory], by the Government of India, and

(b) in other cases, by the States within which such duties are respectively leviable.

Service tax levied by Union and collected and appropriated by the Union and the States.

(2) The proceeds in any financial year of any such duty leviable within any State shall not form part of the Consolidated Fund of India, but shall be assigned to that State.

*[**268A.** (1) Taxes on services shall be levied by the Government of India and such tax shall be collected and appropriated by the Government of India and the States in the manner provided in clause (2).

(2) The proceeds in any financial year of any such tax levied in accordance with the provisions of clause (1) shall be—

(*a*) collected by the Government of India and the States; (*b*) appropriated by the Government of India and the States, in accordance with such principles of collection and appropriation as may be formulated by Parliament by law.]

Taxes levied and collected by the Union but assigned to the States.

269. 1[(1) Taxes on the sale or purchase of goods and taxes on the consignment of goods shall be levied and collected by the Government of India but shall be assigned and shall be deemed to have been assigned to the States on or after the 1st day of April, 1996 in the manner provided in clause (2).

Explanation.—For the purposes of this clause,— (*a*) the expression "taxes on the sale or purchase of goods" shall mean taxes on sale or purchase of goods other than newspapers, where such sale or purchase takes place in the course of inter-State trade or commerce;

(*b*) the expression "taxes on the consignment of goods" shall mean taxes on the consignment of goods (whether the consignment is to the person making it or to any other person), where such consignment takes place in the course of inter-State trade or commerce.

Taxes levied and distributed between the Union and the States.

(2) The net proceeds in any financial year of any such tax, except in so far as those proceeds represent proceeds attributable to Union territories, shall not form part of the Consolidated Fund of India, but shall be assigned to the States within which that tax is leviable in that year, and shall be distributed among those States in accordance with such principles of distribution as may be formulated by Parliament by law.]

1[(3) Parliament may by law formulate principles for determining when a 2[sale or purchase of, or consignment of, goods] takes place in the course of inter-State trade or commerce.]

3[**270.** (1) All taxes and duties referred to in the Union List, except the duties and taxes referred to in articles *[268 and 269], respectively, surcharge on taxes and duties referred to in article 271 and any cess levied for specific purposes under any law made by Parliament shall be levied and collected by the Government of India and shall be distributed between the Union and the States in the manner provided in clause (2).

(2) Such percentage, as may be prescribed, of the net proceeds of any such tax or duty in any financial year shall not form part of the Consolidated Fund of India, but shall be assigned to the States within which that tax or duty is leviable in that year, and shall be distributed among those States in such manner and from such time as may be prescribed in the manner provided in clause(3).

(3) In this article, "prescribed" means,— (*i*) until a Finance Commission has been constituted, prescribed by the President by order, and (*ii*) after a Finance Commission has been constituted, prescribed by the President by order after considering the recommendations of the Finance Commission.]

Surcharge on certain duties and taxes for purposes of the Union.

271. Notwithstanding anything in articles 269 and 270, Parliament may at any time increase any of the duties or taxes referred to in those articles by a surcharge for purposes of the Union and the whole proceeds of any such surcharge shall form part of the Consolidated Fund of India.

272. *[Taxes which are levied and collected by the Union and may be distributed between the Union and the States.] Rep. by the Constitution (Eightieth Amendment) Act*, 2000*,s.* 4.

Grants in lieu of export duty on jute and jute products.

273. (1) There shall be charged on the Consolidated Fund of India in each year as grants-in-aid of the revenues of the States of Assam, Bihar, Orissa and West Bengal, in lieu of assignment of any share of the net proceeds in each year of export duty on jute and jute products to those States, such sums as may be prescribed.

(2) The sums so prescribed shall continue to be charged on the Consolidated Fund of India so long as any export duty on jute or jute products continues to be levied by the Government of India or until the expiration of ten years from the commencement of this Constitution whichever is earlier.

(3) In this article, the expression "prescribed" has the same meaning as in article 270.

Prior recommendation of President required to Bills affecting taxation in which States are interested.

274. (1) No Bill or amendment which imposes or varies any tax or duty in which States are interested, or which varies the meaning of the expression "agricultural income" as defined for the purposes of the enactments relating to Indian income-tax, or which affects the principles on which under any of the foregoing provisions of this Chapter moneys are or may be distributable to States, or which imposes any such surcharge for the purposes of the Union as is mentioned in the foregoing provisions of this Chapter, shall be introduced or moved in either House of Parliament except on the recommendation of the President.

(2) In this article, the expression "tax or duty in which States are interested" means— (*a*) a tax or duty the whole or part of the net proceeds whereof are assigned to any State; or (*b*) a tax or duty by reference to the net proceeds where of sums are for the time being payable out of the Consolidated Fund of India to any State.

Grants from the Union to certain States.

275. (1) Such sums as Parliament may by law provide shall be charged on the Consolidated Fund of India in each year as grants-in-aid of the revenues of such States as Parliament may determine to be in need of assistance, and different sums may be fixed f or different States: Provided that there shall be paid out of the Consolidated Fund of India as grants-in-aid of the revenues of a State such capital and recurring sums asmay be necessary to enable that Sta te to meet the costs of such schemes of development as may be undertaken by the State with the approval of the Government of India for the purpose of promoting the welfare of the Scheduled Tribes in that State or raising the level of administration of the Scheduled Areas therein to that of the administration of the rest of the areas of that State:

Provided further that there shall be paid out of the Consolidated Fund of India as grants-in-aid of the revenues of the State of Assam sums, capital and recurring, equivalent to— (*a*) the average excess of expenditure over the revenues during the two years immediately preceding the commencement of this Constitution in respect of the administration of the tribal areas specified in 1[Part I] of the table appended to paragraph 20 of the Sixth Schedule; and (*b*) the costs of such schemes of development as may be undertaken by that State with the approval of the Government of India for the purpose of raising the level of administration of the said areas to that of the administration of the rest of the areas of that State.

1[(1A) On and from the formation of the autonomous State under article 244A,

(i) any sums payable under clause (*a*) of the second proviso to clause (1) shall, if the autonomous State comprises all the tribal areas referred to therein, be paid to the autonomous State, and, if the autonomous State comprises only some of those tribal areas, be apportioned between the State of Assam and the autonomous State as the President may, by order, specify;

(ii) there shall be paid out of the Consolidated Fund of India as grants-in-aid of the revenues of the autonomous State sums, capital and recurring, equivalent to the costs of such schemes of development as may be undertaken by the autonomous State with the approval of the Government of India for the purpose of raising the level of administration of that State to that of the administration of the rest of the State of Assam.]

(2) Until provision is made by Parliament under clause (1), the powers conferred on Parliament under that clause shall be exercisable by the President by order and any order made by the President under this clause shall have effect subject to any provision so made by Parliament:

Provided that after a Finance Commission has been constituted no order shall be made under this clause by the President except after considering the recommendations of the Finance Commission.

Taxes on professions, trades, callings and employments.

276. (1) Notwithstanding anything in article 246, no law of the Legislature of a State relating to taxes for the benefit of the State or of a municipality, district board, local board or other local authority therein in respect of professions, trades, callings or employments shall be invalid on the ground that it relates to a tax on income.

(2) The total amount payable in respect of any one person to the State or to any one municipality, district board, local board or other local authority in the State by way of taxes on professions, trades, callings and employments shall not exceed 1[two thousand and five hundred rupees] per annum.

Savings.

277. Any taxes, duties, cesses or fees which, immediately before the commencement of this Constitution, were being lawfully levied by the Government of any State or by any municipality or other local authority or body for the purposes of the State, municipality, district or other local area may, notwithstanding that those taxes, duties, cesses or fees are mentioned in the Union List, continue to be levied and to be applied to the same purposes until provision to the contrary is made by Parliament by law.

278. [*Agreement with States in Part B of the FirstSchedule with regard to certain financial matters.*] *Rep. by the Constitution* (*Seventh Amendment*) *Act,* 1956, s. 29 and Sch. Calculation of "net proceeds", etc.

279. (1) In the foregoing provisions of this Chapter, "net proceeds" means in relation to any tax or duty the proceeds thereof reduced by the cost of collection, and for the purposes of those provisions the net proceeds of any tax or duty, or of any part of any tax or duty, in or attributable to any area shall be ascertained and certified by the Comptroller and Auditor-General of India, whose certificate shall be final.

(2) Subject as aforesaid, and to any other express provision of this Chapter, a law made by Parliament or an order of the President may, in any case where under this Part the proceeds of any duty or tax are, or may be, assigned to any State, provide for the manner in which the proceeds are to be calculated, for the time from or at which and the manner in which any payments are to be made, for the making of adjustments between one financial year and another, and for any other incidental or ancillary matters.

Finance Commission.

280. (1) The President shall, within two years from the commencement of this Constitution and thereafter at the expiration of every fifth year or at such earlier time as the President considers

necessary, by order constitute a Finance Commission which shall consist of a Chairman and four other members to be appointed by the President.

(2) Parliament may by law determine the qualifications which shall be requisite for appointment as members of the Commission and the manner in which they shall be selected.

(3) It shall be the duty of the Commission to make recommendations to the President as to—

(a) the distribution between the Union and the States of the net proceeds of taxes which are to be, or may be, divided between them under this Chapter and the allocation between the States of the respective shares of such proceeds;

(b) the principles which should govern the grantsin- aid of the revenues of the States out of the Consolidated Fund of India;

1 [(*bb*) the measures needed to augment the Consolidated Fund of a State to supplement the resources of the Panchayats in the State on the basis of the recommendations made by the Finance Commission of the State;]

2 [(*c*) the measures needed to augment the Consolidated Fund of a State to supplement the resources of the Municipalities in the State on the basis of the recommendations made by the Finance Commission of the State;]

3 [(*d*)] any other matter referred to the Commission by the President in the interests of sound finance.

(4) The Commission shall determine their procedure and shall have such powers in the performance of their functions as Parliament may by law confer on them.

Restrictions as to imposition of tax on the sale or purchase of goods.

286. (1) No law of a State shall impose, or authorize the imposition of, a tax on the sale or purchase of goods where such sale or purchase takes place—

(a) outside the State; or

(b) in the course of the import of the goods into, or export of the goods out of, the territory of India.

2[(2) Parliament may by law formulate principles for determining when a sale or purchase of goods takes place in any of the ways mentioned in clause (1).

3[(3) Any law of a State shall, in so far as it imposes, or authorises the imposition of,— (*a*) a tax on the sale or purchase of goods declared by Parliament by law to be of special importance in inter-State trade or commerce; or

(b) a tax on the sale or purchase of goods, being a tax of the nature referred to in sub-clause (*b*), subclause

(c) or sub-clause (*d*) of clause (29A) of article 366, be subject to such restrictions and conditions in regard to the system of levy, rates and other incidents of the tax as Parliament may by law specify.]]

Exemption from taxes on electricity

287. Save in so far as Parliament may by law otherwise provide, no law of a State shall impose, or authorise the imposition of, a tax on the consumption or sale of electricity (whether produced by a Government or other persons) which is—

(a) consumed by the Government of India, or sold to the Government of India for consumption by that Government; or

(b) consumed in the construction, maintenance or operation of any railway by the Government of India or a railway company operating that railway, or sold to that Government or any such railway company for consumption in the construction, maintenance or operation of any railway, and any such law imposing, or authorising the imposition of, a tax on the sale of electricity shall secure that the price of electricity sold to the Government of India for consumption by that Government, or to any such railway company as aforesaid for consumption in the construction, maintenance or operation of any railway, shall be less by the amount of the tax than the price charged to other consumers of a substantial quantity of electricity.

Exemption from taxation by States in respect of water or electricity in certain cases.

288. (1) Save in so far as the President may by order otherwise provide, no law of a State in force immediately before the commencement of this Constitution shall impose, or authorise the imposition of, a tax in respect of any water or electricity stored, generated, consumed, distributed or sold by any authority established by any existing law or any law made by Parliament for regulating or developing any inter-State river or river-valley.

Explanation.—The expression "law of a State in force" in this clause shall include a law of a State passed or made before the commencement of this Constitution and not previously repealed, notwithstanding that it or parts of it may not be then in operation either at all or in particular areas.

(2) The Legislature of a State may by law impose, or authorise the imposition of, any such tax as is mentioned in clause (1), but no such law shall have any effect unless it has, after having been reserved for the consideration of the President, received his assent; and if any such law provides for the fixation of the rates and other incidents of such tax by means of rules or

orders to be made under the law by any authority, the law shall provide for the previous consent of the President being obtained to the making of any such rule or order.

Exemption of property and income of a State from Union taxation.

289. (1) The property and income of a State shall be exempt from Union taxation

(2) Nothing in clause (1) shall prevent the Union from imposing, or authorising the imposition of, any tax to such extent, if any, as Parliament may by law provide in respect of a trade or business of any kind carried on by, or on behalf of, the Government of a State, or any operations connected therewith, or any property used or occupied for the purposes of such trade or business, or any income accruing or arising in connection therewith.

(3) Nothing in clause (2) shall apply to any trade or business, or to any class of trade or business, which Parliament may by law declare to be incidental to the ordinary functions of Government.

DISTRIBUTION OF LEGISLATIVE POWER

Distribution of Legislative Power – Constitution of India

The Constitution divides law-making powers between the Union and the States to ensure smooth governance. This is mainly done through the Seventh Schedule, which has three lists.

1. Union List (List I)
   - Contains subjects on which only the Parliament can make laws.
   - These subjects need national-level uniformity.
   - Examples: Defence, Foreign Affairs, Atomic Energy, Railways, Banking.
2. State List (List II)
   - Contains subjects on which only State Legislatures can make laws.
   - These are matters of local and regional importance.
   - Examples: Police, Public Health, Agriculture, Local Government.
3. Concurrent List (List III)
   - Contains subjects on which both Parliament and State Legislatures can make laws.
   - If there is a conflict, the Union law prevails.
   - Examples: Education, Forests, Marriage & Divorce, Criminal Law.
4. Residuary Powers
   - Matters not listed in any of the lists come under Parliament (Union).
   - Example: Cyber Laws, Space Technology.

5. Special Powers of Parliament

Parliament can also:

- Make laws on State List subjects during Emergency.
- Make laws when Council of States (Rajya Sabha) passes a resolution.
- Make laws for two or more states voluntarily if they request.
- Override State laws on Concurrent List in case of conflict.

INTERSTATE RELATION

Interstate relations deal with how states interact with each other and how the Union helps maintain coordination and cooperation between them.

1. Inter-State Water Disputes
   - States may fight over sharing river water.
   - Parliament can set up Inter-State Water Dispute Tribunals to settle issues.
   - Tribunal decisions are final and binding.
2. Inter-State Council (Article 263)
   - A body to promote cooperation, coordination, and resolve disputes between states.
   - Helps in discussing common problems and improving Centre–State relations.
3. Freedom of Inter-State Trade & Commerce (Article 301)
   - Trade, movement of goods, and business across states must be free.
   - No state can unfairly restrict trade with another state.
4. Full Faith and Credit (Article 261)
   - States must recognize public acts, records, and court judgments of other states.
   - Ensures legal decisions are valid across India.
5. Inter-State Migration and Communication
   - Citizens can move freely, settle, and work in any state.
   - Promotes national unity and mobility.
6. Coordination through Zonal Councils
   - India is divided into five zones, each with a Zonal Council.
   - Helps in solving regional problems like security, transport, and economic issues.
7. Adjudication of Inter-State Disputes (Article 131)
   - The Supreme Court settles disputes between:
     - Two or more states
     - State(s) and the Union
   - Ensures fair settlement of conflicts.

EMERGENCY PROVISIONS

OBJECTIVES

- After going through this unit, you should be able to:
- Trace historical background of the emergency provisions;
- Describe types of Emergency;
- Describe salient characteristics of the provisions; and
- Explain misuses of the emergency provisions.

INTRODUCTION

Emergency in a political system denotes a situation in which the chief executive imposes restrictions on the right to freedom of people. In India, such restrictions are imposed according to certain provisions enshrined in the Constitution, generally known as emergency provisions. Emergency is imposed under some situations such as war, external aggression, internal disturbances or armed rebellion or financial crisis in whole of India or any part of it. It imposes restrictions on freedom of people .Emergency provisions in Indian Constitution are provided in a separate Part-XVIII under Articles 352-360. The order to declare emergency is passed by the President of India. He declares it on the advice of Council of Ministers. However, the real power during emergency is exercised by the prime minister. During emergency the Union executive can give directions to the executive in the states and the parliament can pass legislation on any matter which is not in the Union Legislature List. During emergency, authorities of the state government enjoy subordinate positions to the central authorities.

HISTORICAL BACKGROUND

The need to include emergency provisions arose in the context of unsual political situation in India. Constitution of India has emergency provisions, which have been borrowed from Constitutions of Weimar (Germany) and Government of India Act, 1935. Indian Constitution followed Government of India Act 1935 which embodied emergency provisions in section 45 for the Centre and in section 93 for the Provinces. It empowered the Chief Executive to declare emergency.

The Government of India Act 1935 was meant to provide Provincial autonomy in India. But it had also emergency provisions which put restrictions on the autonomy of provinces. It involved questions of relations between centre and provincial units.The Act empowered the centre to control and intervene in provincial matters if emergency arises due to war or internal disturbance, and make provision for carrying administration if the machinery of ministerial

government failed to function. In times of emergency due to war or internal disturbances, Governor General was armed with power to make laws on all matters, even those in the provincial list. Governor General could declare emergency in provinces. Apart from Government of India Act 1935 and the Constitution of Germany also contributed to inclusion of emergency provisions in the Indian Constitution. The Governor General of India had in fact specific responsibility concerning peace and tranquility of India or any part thereof. Even he could act independently in the provincial government through the Governor who was also empowered to function in the respective provinces and was the main source of information of the Governor- General.

Debate in the Constituent Assembly

There were differences among the members of the Constituent Assembly about the need to include emergency provisions in the Constitution. According to Graniville Austin, A.K. Ayyar and K.M. Munshi were staunchest supporters of the curb on freedom. K.M. Munshi supported that both provincial and union governments should be given right to suspend right to freedom in times of emergency. Their views were supported in the Rights Sub-committee "with one or two exceptions". Ayyar suggested that the rights enshrined in the constitution must be subject to public order, security and safety. He supported his arguments by giving examples of disturbances in Bengal and Assam, communal riots in Punjab and NWPF (North West Frontier Provinces). However, suggestions to suspend Fundamental Rights were opposed by three members: KT Shah, HV Kamath and H. N. Kunjru. With reference to the provision of afinancial emergency H.N. Kunjru saidthey were a serious threat to the financial autonomy of the States. After deliberations on both types of views – those which supporting the suspension of rights during emergency and those which opposed the suspension, the committee prepared a new version about suspension of rights during emergency. The new version did not support arbitrary suspension of democratic rights during emergency. What it allowed was suspension of taking resource to constitutional remedies under Art. 32. The suspension of Fundamental Rights were kept out of purview of judicial review till the passage of 44th Constitutional Amendment in 1978.

TYPES OF EMERGENCY

As you have read, emergency in India is declared by the President. It is important to note that during emergency, all activities are carried out in the name of the President but, it is the Prime Minister or the central government which exercise powers in practice. There are three kinds of emergency and each of them can be declared on different grounds. The three kinds of emergency are: national emergency, state emergency and financial emergency. You will read about them below.

National Emergency (Art. 352)

According to Article 352 A (national) emergency can be proclaimed in India in following situations: war, external aggression, internal disturbances or armed rebellion in whole of India or any part of it. The 44th Constitutional Amendment substituted the phrase 'internal disturbance' with "armed rebellion". The President can declare emergency after receiving a written communication about cabinet's decision in favour of emergency, and after satisfying himself about prevalence of the situations just mentioned above. According to Articles 358 and 359, President has powers to suspend Fundamental Rights except in respect to Article 20 (right to protection in respect to conviction for offences) and Article 21 (right to life and personal liberty). During national emergency the union government's powers extends to the jurisdiction of legislatures and executives in the states.It gives direction to the states the way executive power should be exercised (Art. 353). Parliament enjoys power to make laws which are not mentioned in the Union List. These also include matters listed in the State List (Art. 250). During the time of emergency, the President has constitutional power to modify the provisions of the constitution relating to the allocation of financial resources between the Union and the States (Art. 253).

Every proclamation of such emergency is required to be laid before each House of Parliament. If both houses of Parliament do not approve the proclamation at the expiry of one month from the date of proclamation, it will cease to operate. If at the time of such proclamation, the House of the People has been dissolved or its dissolution takes place within one month after the proclamation, and if the resolution has been by before Council of States (Rajya Sabha) but has not been passed by the House of People (Lok Sabha), the proclamation will cease to operate on the expiration of thirty days from the date when the house first met after it was reconstituted. However, the condition of expiration of thirty days does not apply if a resolution to this effect is passed by both Houses of Parliament. The proclamation (after being approved by both Houses of Parliament) will cease to exist after expiration of six month from the date of proclamation. It can be extended for another six months. A resolution for proclamation of emergency must be approved by a majority of total number of members of a House and not less than two-third of the members present in the House and voting.

In addition, if the lower house passes a resolution disapproving the proclamation or its continuance, it shall be invalidated. Even if notice of a resolution signed by not less than one- tenth of the total members is given to the President or Lok Sabha Speaker, a special sitting of the House should be held within fourteen days to discuss and consider it.

The Indian Constitution has a provision of judicial review. It means that the judiciary has power to interpret the constitution and declare any law or order passed by legislature or judiciary

void which conflicts with the constitutional provisions. But declaration of emergency, thus violation rights of was removed from the purview of judicial review by the 42nd Constitutional Amendment in 1976. However, provision for its judicial review was restored by the 44th Amendment Act in 1978. A declaration of emergency should be approved by both houses of parliament within two months of its declaration. And if it is not approved by the parliament within this time limit, the declaration of emergency will become ineffective. Once declaration of emergency is approved by Parliament, it may continue be effective for six months at a time unless revoked by the President earlier by a subsequent proclamation. Since Independence, there were three instances of declaration of national emergency. First instance was during Indo- China War from 26 October1962 to 10 January 1968. Second was during Indo-Pak war, from 3 December 1971 to 21 March 1977. And the third instance was during 25 June 1975 and terminated on 21 March 1977. The national emergency in first two instances was clamped due to wars with other countries.In the third instance, the reasons given by the central government were internal disturbances in the country.

State Emergency (Art. 356)

State emergency is also often known as President's rule.State emergency is imposed on failure of constitutional machinery in the states.All states in India except two newly created states Chhattisgarh and Telangana have been placed under state agency at different times. State emergency is imposed by the President if he is satisfied with the report of the Governor that there is break down of constitutional machinery in the state. President's rule may be declared in the states on the following grounds: If the State Legislature fails to elect a leader as Chief Minister; Breakdown of the coalition; If the elections are not conducted due to imminent reasons; and Loss of majority in the assembly.Though state emergency is imposed by the President, it is the Governor of the state who acts as representative of the President or the centre. This is also called central rule in the states. The central rule in the states, except in Jammu and Kashmir, is called President rule; in Jammu and Kashmir the central ruleis is called Governor's rule. The President through the Governor exercises legislative and executive powers. But his functions do not cover judiciary.

Financial Emergency (Art. 360)

According to Article 360, Financial emergency can be imposed when there is financial instability in India or any part of it. In India, financial emergency has not been imposed. If a situation arises for proclamation of financial emergency in India, it must be approved by the Parliament within two months of promulgation. In case, thelower house is dissolved at the time of proclamation of financial emergency, it will cease to exist on expiry of thirty days from the date of its first meeting after its reconstitution.Under the situation of financial emergency, the President

can reduce the salaries of all government officials, including Supreme Court and High Court judges. Even money bills and other bills under article 207 passed by the State Legislatures need to be submitted to the President for the approval under such circumstance. With respect to Jammu and Kashmiras the state enjoys special status under Article 370, Indian Union have no power to promulgate financial emergency in Jammu & Kashmir.

MISUSE OF EMERGENCY PROVISIONS

As you have read, emergency provisions have been used to impose national emergency as well as President rule in India. Since the independence of India, national emergencies were imposed three times. In two instances, emergency was used to protect Indian land from the external threats especially when China attacked India in 1962 and East Pakistan – West Pakistan war in 1971. But in the third instance, in 1975 it was used due to political reasons. The real problem arose on the use of Article 352, when Congress Government at the centre under the leadership of Prime Minister Indira Gandhi restricted freedom of speech and association in 1975. The national emergency of that time received enormous criticisms across the country. She had attempted to do so because the verdict of Allahabad High Court which went against her. Under this circumstance, Jayaprakash Narayan had called upon the army, police, and government employees not to obey any order, which they considered wrong. He also urged the Chief Justice Mr. A.N. Roy not to sit on the bench to hear the election appeal of Prime Minister. All the opposition political parties and leaders met in a meeting to form 'Lok Sangharsh Samiti'. Later, under the leadership of Jayaprakash Narayan, it declared "a total revolution" which in fact increased mass mobilization against the autocracy and corruption.

The makers of the Indian Constitution wished the emergency provisions to be applied to meet the potential threat of war, external aggression, internal disturbances, trained rebellion or financial emergency in whole or any part of the country. Forewarning the misuse of Article 356, Dr. B.R. Ambedkar said that 'it might remain a dead letter and might never be used except as a last resort after everything else failed'. Emergency provisions except for few occasions since 115 the independence of the country till the 1990s has been misused for only political **Emergency Provisions** vendetta. However, in the 21st century the misuse of this provision has decreased.

The central government ruled by some political parties or coalition of parties misused emergency provisions (Article 356) to dismiss the state governments which were ruled by different political party or parties in the state and impose President's rule there. On several occasions in India, these provisions have been used by central government by both the Congress and the non-Congress parties to impose president rule in different states. The most important examples of such misuse included dismissal of the first government led by the communist leader

E.M.S. Nampoodaripad in Kerala in 1957. It was the first instance of dismissal of an elected government by using emergency provisions in India. In 1980, Indira Gandhi government dismissed state governments ruled by the opposition parties in several states. There are two important examples of the misuse of emergency provisions by the non-Congress governments. One by the Janata Party government when Morarji Desai was Prime Minister of the country in 1977. The other example was dismissal of the Congress governments by the Janata Dal led government under the leadership of V.P. Singh.

Imposition of President's rule in the state has often been criticized for being misused by central government to exercise control over the state administration. It has often been alleged that the central governments have often misused Article 356 to dismiss opposition governments and impose President rule. Since 1994 imposition of President's rule has become less frequent. It has happened due to the court's ruling in the Bommai Case: According to the Bommia case imposition of president rule in a state has to be approved by both houses of parliament. It has made misuse of Article 356 difficult.

LET US SUM UP

Emergency is a situation when democratic rights of people are suspended and the central government assumes powers over the state governments. The power to declare emergency is vested with the President of India. He can declare emergency after on the advice of the Council of ministers.

UNIT V

THE FEDERAL SYSTEM

PART-A

1. List out the types of Emergency? What is the objective of Emergency of Provisions?

   Types of Emergency:

   - National Emergency
   - State Emergency
   - Financial Emergency

   Objectives of Emergency provisions:

   - Trace historical background of the emergency provisions;
   - Describe types of Emergency;
   - Describe salient characteristics of the provisions; and
   - Explain misuses of the emergency provisions.

2. What is meant by Federal System?

   Federalism is a system of government in which the same territory is controlled by two levels of government. ... Both the national government and the smaller political subdivisions have the power to make laws and both have a certain level of autonomy from each other.

3. What is meant by "Legislation"?

   Legislation, the preparing and enacting of laws by local, state, or national legislatures.

4. Write short notes on Division of Power in the Constitution of India.

   Separation of powers divides the mechanism of governance into three branches i.e. Legislature, Executive and the Judiciary. Although different authors give different definitions, in general, we can frame three features of this doctrine.

5. What is meant by residuary powers of Legislation?

   A residuary power is a power retained by a governmental authority after certain powers have been delegated to other authorities. The Parliament has powers to make any law with respect to any matter which is not a part of the Concurrent List or State List.

6. State Federal System.

   A federal system of government is one that divides the powers of government between the national (federal) government and state and local governments. The Constitution of the United States established the federal system, also known as federalism.

7. How division of power is classified in constitution of India?

   The legislative powers are divided between the Union government and the State governments by the Constitution. They are divided into three lists- Union list, State list and Concurrent List.

8. What are the taxes levied on an intra-state supply?

   Under GST, CGST is a tax levied on Intra State supplies of both goods and services by the Central Government and will be governed by the CGST Act. SGST will also be levied on the same Intra State supply but will be governed by the State Government.

9. How Service tax in Collected in State and Unions?

   Service tax is a tax levied by the government on service providers on certain service transactions, but is actually borne by the customers. were also included in the list of services. It is charged to the individual service providers on cash basis, and to companies on accrual basis.

PART-B

1. With neat diagram explain the Division of Powers in the Constitution of India.
2. In detail, explain the residuary powers of legislation.
3. How Revenues can be distributed between the Union and the States? Explain in detail.
4. How power can be distributed based on administrative and financial way? Explain in detail.
5. Discuss about Emergency provisions and its types in detail.
6. Describe objectives of Emergency provision and its Misuse of Emergency provisions.
7. Discuss in detail about Sarkaria Commission.
8. Elaborate administrative and financial distribution of powers.